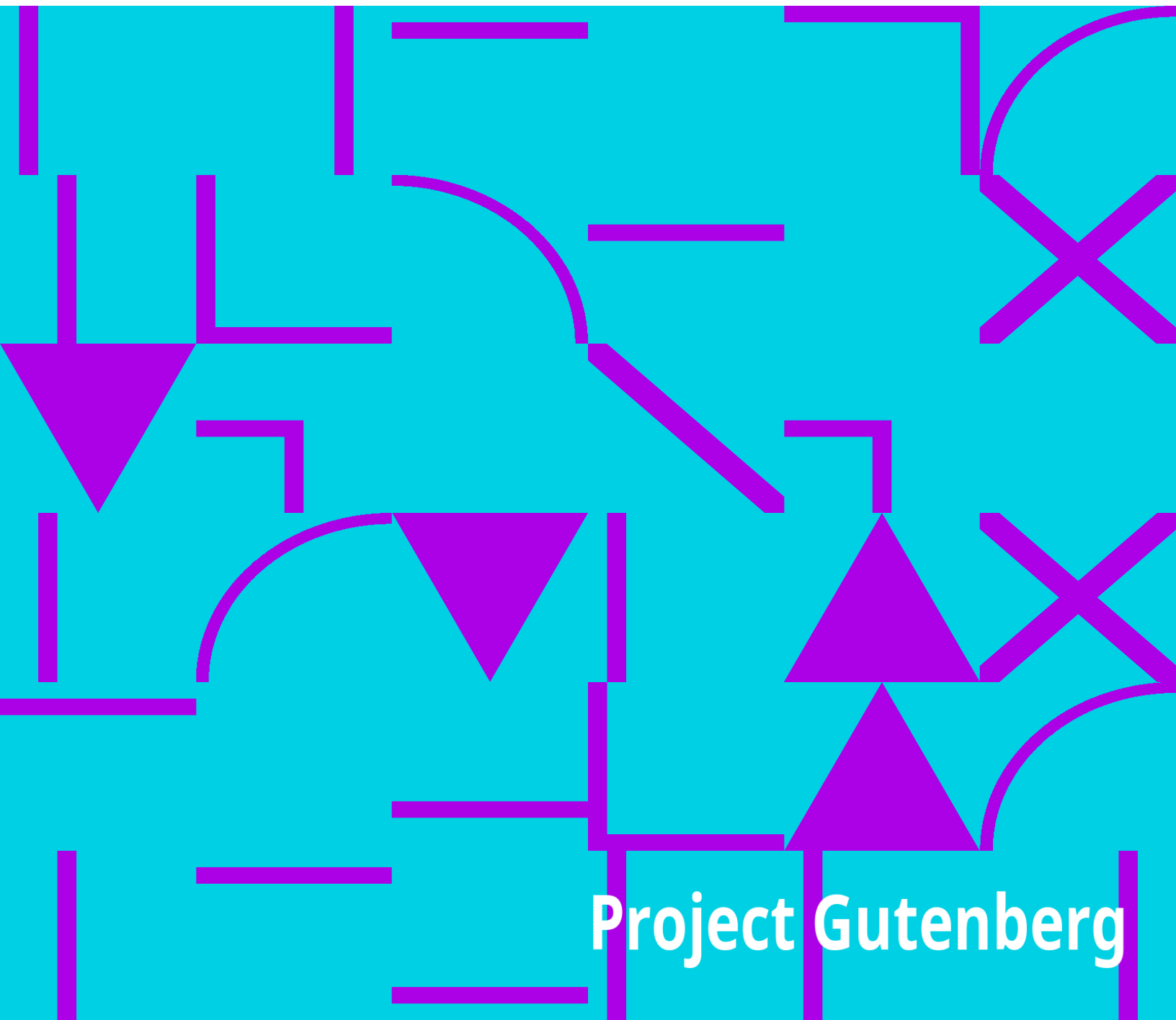


The Public vs. M. Gustave Flaubert

Various

An abstract geometric pattern composed of various shapes including triangles, squares, circles, and lines in shades of blue, green, and yellow, set against a black background.

Project Gutenberg

The Public vs. M. Gustave Flaubert

Various

An abstract geometric pattern on a teal background. It consists of various purple shapes including horizontal and vertical lines, right-angled corners, semi-circles, and triangles. Some triangles are solid purple, while others are hollow. There are also 'X' marks formed by intersecting lines.

Project Gutenberg

The Project Gutenberg eBook of The Public vs. M. Gustave Flaubert

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Public vs. M. Gustave Flaubert

Author: Various

Release date: January 1, 2004 [eBook #10666]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/10666

Credits: Produced by Juliet Sutherland, Rosanna Yuen and PG Distributed Proofreaders

*** START OF THE PROJECT GUTENBERG EBOOK THE PUBLIC
VS. M. GUSTAVE FLAUBERT ***

THE PUBLIC vs. M. GUSTAVE FLAUBERT

The folios referred to in the trial are the folios either of the *Revue de Paris* or of the first edition of the book.—EDITOR.

Speech of the Prosecuting Attorney,

M. ERNEST PINARD

Gentlemen, in entering upon this debate, the Public Attorney is in the presence of a difficulty which he cannot ignore. It cannot be put even in the nature of a condemnation, since offenses to public morals and to religion are somewhat vague and elastic expressions which it would be necessary to define precisely. Nevertheless, when we speak to right-minded, practical men we are sure of being sufficiently understood to distinguish whether a certain page of a book carries an attack against religion and morals or not. The difficulty is not in arousing a prejudice, it is far more in explaining the work of which you are to judge. It deals entirely with romance. If it were a newspaper article which we were bringing before you, it could be seen at once where the fault began and where it ended; it would simply be read by the ministry and submitted to you for judgment. Here we are not concerned with a newspaper article, but entirely with a romance, which begins the first of October, finishes the fifteenth of December, and is composed of six numbers, in the *Revue de Paris*, 1856. What is to be done in such a case? What is the duty of the Public Ministry? To read the whole romance? That is impossible. On the other hand, to read only the incriminating texts would expose us to deep reproach. They could say to us: If you do not show the

case in all its parts, if you pass over that which precedes and that which follows the incriminating passages, it is evident that you wish to suppress the debate by restricting the ground of discussion. In order to avoid this twofold difficulty, there is but one course to follow, and that is, to relate to you the whole story of the romance without reading any of it, or pointing out any incriminating passage; then to cite incriminating texts, and finally to answer the objections that may arise against the general method of indictment.

What is the title of the romance? *Madame Bovary*. This title in itself explains nothing. There is a second in parentheses: *Provincial Morals and Customs*. This is also a title which does not explain the thought of the author but which gives some intimation of it. The author does not endeavour to follow such or such a system of philosophy, true or false; he endeavours to produce certain pictures, and you shall see what kind of pictures! Without doubt, it is the husband who begins and who terminates the book; but the most serious portrait of the work, the one that illumines the other paintings, is that of Madame Bovary.

Here I relate, I do not cite. It takes the husband first at college, and it must be stated that the boy already gave evidence of the kind of husband he would make. He is excessively heavy and timid, so timid that when he arrives at the college and is asked his name, he responds: "*Charbovari*" He is so dull that he works continually without advancing. He is never the first, nor is he the last in his class; he is the type, if not of the cipher at least of the laughing-stock of the college. After finishing his studies here, he goes to study medicine at Rouen, in a fourth-story room overlooking the Seine, which his mother rented for him, in the house of a dyer of her acquaintance. Here he studies his medical books, and arrives little by little, not at the degree of doctor of medicine, but that of health officer. He frequented the

inns, failed in his studies, but as for the rest, he had no other passion than that of playing dominoes. This is M. Bovary.

The time comes for him to marry. His mother finds him a wife in the widow of a sheriff's officer of Dieppe; she is virtuous and plain, is forty-five years old, and has six thousand a year income. Only, the lawyer who had her capital to invest set out one fine morning for America, and the younger Madame Bovary was so much affected, so struck down by this unexpected blow that she died of it. Here we have the first marriage and the first scene.

M. Bovary, now being a widower, begins to think of marrying again. He questions his memory; there is no need of going far; there immediately comes to his mind the daughter of a neighboring farmer, Mile. Emma Rouault, who had strangely aroused Madame Bovary's suspicions. Farmer Rouault had but one daughter, and she had been brought up by the Ursuline sisters at Rouen. She was little interested in matters of the farm; her father was anxious for her to marry. The health officer presented himself, there was no difficulty about the *dot*, and you understand that with such a disposition on both sides, these things are quickly settled. The marriage takes place. M. Bovary is at his wife's knees, is the happiest of men and the blindest of husbands. His sole occupation is anticipating his wife's wishes.

Here the rôle of M. Bovary ends; that of Madame Bovary becomes the serious work of the book.

Gentlemen, does Madame Bovary love her husband, or try to love him? No; and from the beginning there has been what we might call the scene of initiation. From the moment of her marriage, another horizon stretched itself out before her, a new life appeared to her. The proprietor of Vaubyessard Castle gave a grand entertainment. He invited the health officer and his wife, and this was for her an initiation into all the ardour of voluptuousness! There she discovered the Duke of Laverdière who had had

some success at Court; she waltzed with a viscount and experienced an unusual disturbance of mind. From this moment she lived a new life; her husband and all her surroundings became insupportable to her. One day, in looking over some furniture, she hit a piece of wire which tore her finger; it was the wire from her wedding bouquet.

To try to dispel the *ennui* that was consuming her, M. Bovary sacrificed his office and established himself at Yonville. Here was the scene of the first fall. We are now in the second number. Madame arrived at Yonville, and there, the first person she met upon whom she could fix her attention was—not the notary of the place, but the only clerk of that notary, Léon Dupuis. This is a young man who is making his own way and is about to set out for the capital. Any other than M. Bovary would have been disquieted by the visits of the young clerk, but M. Bovary is so ingenuous that he believes in his wife's virtue. Léon, wholly inexperienced, has the same idea. He goes away, and the occasion is lost; but occasions are easily found again.

There was in the neighborhood of Yonville one Rodolphe Boulanger (you understand that I am narrating). He was a man of thirty-four years old and of a brutal temperament; he had had much success and many easy conquests; he then had an actress for a mistress. He saw Madame Bovary; she was young and charming; he resolved to make her his mistress. The thing was easy; three meetings were sufficient to bring it about. The first time he came to an agricultural meeting, the second time he paid her a visit, the third time he accompanied her on a horseback ride which her husband judged necessary to her health; it was then, in a first visit to the forest, that the fall took place. Their meetings multiplied after this, at Rodolphe's chateau and in the health officer's garden. The lovers reached the extreme limits of voluptuousness! Madame Bovary wished to elope with Rodolphe, but while Rodolphe dared not say no, he wrote a letter in which he tried to

show her that for many reasons, he could not elope. Stricken down by the reception of this letter, Madame Bovary had a brain fever, following which typhoid fever declared itself. The fever killed the love, but the malady remained. This is the second scene.

We come now to the third scene. The fall with Rodolphe was followed by a religious reaction, but it was short; Madame Bovary was about to fall anew. The husband thought the theatre useful in the convalescence of his wife and took her to Rouen. In a box opposite that occupied by M. and Madame Bovary, was Léon Dupuis, the notary's young clerk, who had made his way to Paris, and who had now become strangely experienced and knowing. He went to see Madame Bovary and proposed a *rendezvous*. Madame Bovary suggested the cathedral. On coming out of the cathedral, Léon proposed that they take a cab. She resisted at first, but Léon told her that this was done in Paris, and there was no further obstacle. The fall takes place in the cab! Meetings follow for Léon, as for Rodolphe, at the health officer's house, and then at a room which they rented in Rouen. Finally, she became weary of the second love, and here begins the scene of distress; it is the last of the romance.

Madame Bovary was prodigal, having lavished gifts upon Rodolphe and Léon; she had led a life of luxury and, in order to meet such expense had put her name to a number of promissory notes. She had obtained a power of attorney from her husband in the management of their common patrimony, fell in with a usurer who discounted the notes which, not being paid at the expiration of the time, were renewed under the name of a boon companion. Then came the stamped paper, the protests, judgments and executions, and, finally, the posting for sale of the furniture of Monsieur Bovary, who knew nothing of all this. Reduced to the most cruel extremities, Madame Bovary asked money from everybody, but got none. Léon had nothing, and recoiled frightened at the idea of a crime that was suggested to him for procuring

funds. Having gone through every degree of humiliation, Madame Bovary turned to Rodolphe; she was not successful; Rodolphe did not have 3000 francs. There remained to her but one course: to beg her husband's pardon? No. To explain the matter to him? No, for this husband would be generous enough to pardon her, and that was a humiliation which she could not accept: she must poison herself.

We come now to grievous scenes. The husband is there beside his wife's icy body. He has her night robe brought, orders her wrapped in it and her remains placed in a triple coffin.

One day he opens a secretary and there finds Rodolphe's picture, his letters and Léon's. Do you think his love is then shattered? No, no! on the contrary, he is excited and extols this woman whom others have possessed, as proved by these souvenirs of voluptuousness which she had left to him; and from that moment he neglects his office, his family, lets go the winds the last vestige of his patrimony, and is found dead one day in the arbor in his garden, holding in his hand a long lock of black hair. This is the romance. I have related it to you, suppressing no scene in it. It is called *Madame Bovary*. You could with justice give it another title and call it *Story of the Adulteries of a Provincial Woman*.

Gentlemen, the first part of my task is fulfilled. I have related, I shall now cite, and after the citations come the indictments which are brought upon two counts: offense against public morals and offense against religious morals. The offense against public morals lies in the lascivious pictures which I have brought before your eyes; the offense against religious morals consists in mingling voluptuous images with sacred things. I now come to the citations. I will be brief, for you will read the entire romance. I shall limit myself to citing four scenes, or rather four tableaux. The first will be that of the fall with Rodolphe; the second, the religious reaction between

the two adulteries; the third, the fall with Léon, which is the second adultery, and finally the fourth, the death of Madame Bovary.

Before raising the curtain on these four pictures, permit me to inquire what colour, what stroke of the brush M. Flaubert employs—for this romance is a picture, and it is necessary to know to what school he belongs—what colour he uses and what sort of portrait he makes of his heroine.

The general colour of the author, allow me to tell you, is a lascivious colour, before, during, and after the falls! When she is a child ten or twelve years of age, she is at the Ursuline convent. At this age, when the young girl is not formed, when the woman cannot feel those emotions which reveal to her a new world, she goes to confession:

"When she went to confession, she invented little sins in order that she might stay there longer, kneeling in the shadow, her hands joined, her face against the grating beneath the whispering of the priest. The comparisons of betrothed, husband, celestial lover, and eternal marriage, that recur in sermons, stirred within her soul depths of unexpected sweetness."

Is it natural for a little girl to invent small sins, since we know that for a child the smallest sins are confessed with the greatest difficulty? And again, at this age, when a little girl is not formed, does it not make what I have called a lascivious picture to show her inventing little sins in the shadow, under the whisperings of the priest, recalling comparisons she has heard about the affianced, the celestial lover and eternal marriage which gave her a shiver of voluptuousness?

Would you see Madame Bovary in her lesser acts, in a free state, without a lover and without sin? I pass over those words, "the next day," and that bride who left nothing to be discovered which could be divined or found

out, as the phrase in itself is more than equivocal; but we shall see how it was with the husband:

The husband of the next day, "whom one would have taken for an old maid," the bridegroom of this bride who "left nothing to be discovered that could be divined," arose and went out, "his heart full of the felicities of the night, with mind tranquil and flesh content," going about "ruminating upon his happiness like one who is still enjoying after dinner the taste of the truffles he is digesting."

It now remains, gentlemen, to determine upon the literary stamp of M. Flaubert and upon the strokes of his brush. Now, at the Castle Vaubyessard do you know what most attracted this young woman, what struck her most forcibly? It is always the same thing—the Duke of Laverdiere, as a lover—"as they say, of Marie-Antoinette, between the Messrs. de Coigny and de Lauzun." "Emma's eyes turned upon him of their own accord, as upon something extraordinary and august; he had lived at Court and slept in the bed of queens!" Can it be said that this is only an historic parenthesis? Sad and useless parenthesis! History can authorise suspicions, but has not the right to establish them as fact. History has spoken of the necklace in all romances; history has spoken of a thousand things; but these are only suspicions and, I repeat, I know not by what authority these suspicions should be established as facts. And, since Marie-Antoinette died with the dignity of a sovereign and the calmness of a Christian, her life-blood should efface faults of which there are the strongest suspicions. M. Flaubert was in need of a striking example in the painting of his heroine, but Heaven knows why he has taken this one to express, all at once, the perverse instincts and the ambition of Madame Bovary!

Madame Bovary dances very well, and here she is waltzing:

"They began slowly, then went more rapidly. They turned; all around them was turning—the lamps, the furniture, the wainscoting, the floor, like a disc on a pivot. On passing near the doors the bottom of Emma's dress caught against his trousers. Their legs commingled; he looked down at her; she raised her eyes to his. A torpor seized her; she stopped. They started again, and with a more rapid movement; the Viscount, dragging her along, disappeared with her to the end of the gallery, where, panting, she almost fell, and for a moment rested her head upon his breast. And then, still turning, but more slowly, he guided her back to her seat. She leant back against the wall and covered her eyes with her hands."

I know well that the waltz is more or less like this, but that makes it no more moral!

Take Madame Bovary in her most simple acts, and we have always the same stroke of the brush, on every page. Even Justin, the neighbouring chemist's boy, undergoes some astonishment when he is initiated into the secrets of this woman's toilette. He carries his voluptuous admiration as far as the kitchen.

"With his elbows on the long board on which she was ironing, he greedily watched all these women's clothes spread out about him, the dimity petticoats, the fichus, the collars, and the drawers with running-strings, wide at the hips and growing narrower below.

"What is that for?" asked the young fellow, passing his hand over the crinoline or the hooks and eyes.

"Why, haven't you ever seen anything?' Félicité answered laughing. 'As if your mistress, Madame Homais, didn't wear the same.'"

The husband also asks, in the presence of this fresh-smelling woman, whether the odour comes from the skin or from the chemise.

"Every evening he found a blazing fire, his dinner ready, easy-chairs, and a well-dressed woman, charming with an odour of freshness, though no one could say whence the perfume came, or if it were not her skin that made odourous her chemise."

Enough of quotations in detail! You know now the physiognomy of Madame Bovary in repose, when she is inciting no one, when she does not sin, when she is still completely innocent, and when, on her return from a rendezvous, she is by the side of her husband, whom she detests; you know now the general colour of the picture, the general physiognomy of Madame Bovary. The author has taken the greatest care, employed all the prestige of his style in painting the portrait of this woman. Has he tried to show her on the side of intelligence? Never. From the side of the heart? Not at all. On the part of mind? No. From the side of physical beauty? Not even that. Oh! I know very well that the portrait of Madame Bovary after the adultery is most brilliant; but the picture is above all lascivious, the post is voluptuous, the beauty a beauty of provocation.

I come now to the four important quotations; I shall make but four; I hold to my outline: I have said that the first would be the love for Rodolphe, the second the religious reaction, the third the love for Léon, the fourth her death.

Here is the first. Madame Bovary is near her fall, nearly ready to succumb.

"Domestic mediocrity drove her to lewd fancies, marriage tendernesses to adulterous desires. She would have liked Charles to beat her, that she might have a better right to hate him, to revenge herself upon him."

What was it that seduced Rodolphe and prepared him? The opening of Madame Bovary's dress which had burst in places along the seams of the corsage. Rodolphe took his servant to Bovary's house, to bleed him. The servant was very ill, and Madame Bovary held the basin.

"Madame Bovary took the basin to put it under the table. With the movement she made in bending down, her skirt (it was a summer frock with four flounces, yellow, long in the waist and wide in the skirt) spread out around her on the flags of the room; and as Emma, stooping, staggered a little as she stretched out her arms, the stuff here and there gave with the inflections of her bust."

Here is Rodolphe's reflection: "He again saw Emma in her room, dressed as he had seen her, and he undressed her."

It is the first day they had spoken to each other. "They looked at one another. A supreme desire made their dry lips tremble, and softly, without an effort, their fingers intertwined."

These are the preliminaries of the fall. It is necessary to read the fall itself.

"When the habit was ready, Charles wrote to Monsieur Boulanger that his wife was at his command, and that they counted on his good-nature.

"The next day at noon, Rodolphe appeared at Charles's door with two saddle-horses. One had pink rosettes at his ears and a deerskin side-saddle.

"Rodolphe had put on high soft boots, saying to himself that no doubt she had never seen anything like them. In fact, Emma was charmed with his appearance as he stood on the landing in his great velvet coat and white corduroy breeches."

"As soon as he felt the ground, Emma's horse set off at a gallop. Rodolphe galloped by her side."

Here they are in the forest.

"He drew her farther on to a small pool where duckweeds made a greenness on the water. Faded waterlilies lay motionless between the reeds. At the noise of their steps in the grass, frogs jumped away to hide themselves.

"I am wrong! I am wrong!" she said. 'I am mad to listen to you!'"

"Why? Emma! Emma!"

"Oh, Rodolphe!" said the young woman slowly, leaning on his shoulder."

"The cloth of her habit caught against the velvet of his coat. She threw back her white neck, swelling with a sigh, and faltering, in tears, with a long shudder and hiding her face, she gave herself up to him."

Then she arose and, after shaking off the fatigue of voluptuousness, returned to the domestic hearth, to that hearth where she would find a husband who adored her. After this first fall, after this first adultery, this first fault, is it a sentiment of remorse that she feels, in the presence of this deceived husband who adores her? No! with a bold front, she enters, glorifying adultery.

"But when she saw herself in the glass she wondered at her face. Never had her eyes been so large, so black, of so profound a depth. Something subtle about her being transfigured her. She repeated, 'I have a lover! a lover!' delighting at the idea as if a second puberty had come to her. So at last she was to know those joys of love, that fever of happiness of which

she had despaired! She was entering upon marvels where all would be passion, ecstasy, delirium."

Thus, from this first fault, this first fall, she glorified adultery, she sang the song of adultery, its poesy and its delights. This, gentlemen, to me is much more dangerous and immoral than the fall itself! Gentlemen, all pales before this glorification of adultery, even the rendezvous at night some time after:

"To call her, Rodolphe threw a sprinkle of sand at the shutters. She jumped up with a start; but sometimes he had to wait, for Charles had a mania for chatting by the fireside, and he would not stop. She was wild with impatience; if her eyes could have done it, she would have hurled him out at the window. At last she would begin to undress, then take up a book, and go on reading very quietly as if the book amused her. But Charles, who was in bed, called to her to come too.

"Come, now, Emma,' he said, 'it is time.'

"Yes, I am coming,' she answered.

"Then, as the candles dazzled him, he turned to the wall and fell asleep. She escaped, smiling, palpitating, undressed.

"Rodolphe had a large cloak; he wrapped her in it, and putting his arm around her waist, he drew her without a word to the end of the garden."

"It was in the arbour, on the same seat of old sticks where formerly Léon had looked at her so amorously on the summer evenings. She never thought of him now.

"The cold of the nights made them clasp closer; the sighs of their lips seemed to them deeper; their eyes, that they could hardly see, larger; and in

the midst of the silence low words were spoken that fell on their souls sonorous crystalline, and reverberating in multiplied vibrations."

Gentlemen, do you know of language anywhere in the world more expressive? Have you ever seen a more lascivious picture? Listen further:

"Never had Madame Bovary been so beautiful as at this period; she had that indefinable beauty that results from joy, from enthusiasm, from success, and that is only the harmony of temperament with circumstances. Her desires, her sorrows, the experience of pleasure and her ever-young illusions had, as soil and rain and winds and the sun make flowers grow, gradually developed her, and she at length blossomed forth in all the plentitude of her nature. Her eyelids seemed chiselled expressly for her long amorous looks in which the pupil disappeared, while a strong inspiration expanded her delicate nostrils and raised the fleshy corner of her lips, shaded in the light by a little black down. One would have thought that an artist apt in conception had arranged the curls of hair upon her neck; they fell in a thick mass, negligently and with the changing chances of their adultery that unbound them every day. Her voice now took more mellow inflections, her figure also; something subtle and penetrating escaped even from the folds of her gown and from the line of her foot. Charles, as when they were first married, thought her delicious and quite irresistible."

Up to this time this woman's beauty had consisted of her grace, her elegance, and her clothes; finally she is shown to you without a veil and you can say whether adultery has embellished her or not.

"'Take me away,' she cried, 'carry me off! Oh, I entreat you!'

"And she threw herself upon his mouth, as if to seize there the unexpected consent it breathed forth in a kiss."

Here is a portrait, gentlemen, which M. Flaubert knows well how to draw. How the eyes of this woman enlarge! Something ravishing expands around her, and then her fall! Her beauty has never been so brilliant as the next day after her fall and the days following. What the author shows you is the poetry of adultery, and I ask you again whether these lascivious pages do not express a profound immorality!

I come now to the second situation, which is the religious reaction. Madame Bovary is very ill, is at death's door. She is brought back to life, and her convalescence is made remarkable by a little religious awakening.

"It was at this hour that Monsieur Bournisien came to see her. He inquired after her health, gave her news, exhorted her to religion in a coaxing little gossip that was not without its charm. The mere thought of his cassock comforted her."

Finally, she goes to communion. I do not like much to meet these holy things in a romance; but at least, when one speaks of them, he need not travesty them by his language. Is there in this adulterous woman going to communion anything of the repentant faith of a Magdalene? No, no; she is always the same passionate woman, seeking illusions and seeking them even among the most august and holy things.

"One day, when at the height of her illness, she had thought herself dying, and had asked for the communion; and, while they were making the preparations in her room for the sacrament, while they were turning the night-table covered with sirups into an altar, and while Félicité was strewing dahlia flowers on the floor, Emma felt some power passing over her that freed her from her pains, from all perception, from all feeling. Her body, relieved, no longer thought; another life was beginning; it seemed to her that her being, mounting toward God, would be annihilated in that love like a burning incense that melts into vapour."

In what tongue does one pray to God in language addressed to a lover in the outpourings of adultery? Without doubt they will tell us it is local colour, and excuse it on the ground that a vapourous, romantic woman does nothing, even in religion, like anybody else. There is no local colour which can excuse this mixture! Voluptuous one day, religious the next, there is no woman, even in other countries, under the sky of Spain or Italy, who murmurs to God the adulterous caresses which she gives her lover. You can appreciate this language, gentlemen, and you will not excuse adulterous words being introduced in any way into the sanctuary of the Divinity!

This is the second situation. I now come to the third, which is a series of adulteries.

After the religious transition, Madame Bovary is again ready to fall. She goes to the theatre at Rouen. The play is *Lucia di Lammermoor*. Emma returns to her old self.

"Ah! if in the freshness of her beauty, before the pollution of marriage and the disillusion of adultery, she could have anchored her life upon some great, strong heart, then virtue, tenderness, voluptuousness, and duty blending, she would never have fallen from so high a happiness."

Seeing Lagardy upon the stage, she had a desire to run into his arms, to take refuge in his strength, even as in the incarnation of love, and of saying to him: "Take me, take me away, let us go! thine, thine, with thee are all my ardour and all my dreams!"

Léon was with the Bovarys.

"He was standing behind her, leaning with his shoulder against the wall of the box; now and again she felt herself shuddering beneath the hot breath from his nostrils falling upon her hair."

You were spoken to just now of the pollution of marriage; then you are shown adultery in all its poesy, in its ineffable seductions. I have said that the expression should be modified to read: the disillusion of marriage and the pollution of adultery. Very often when one is married, in the place of happiness without clouds which one promises himself, he finds but sacrifice and bitterness. The word disillusion can then be used justifiably, that of pollution, never.

Léon and Emma have a rendezvous at the cathedral. They look around or they do not, it makes no difference. They go out.

"A lad was playing about the close.

"Go and get me a cab!"

"The child bounded off like a ball by the Rue Quatre-Vents; then they were alone a few minutes, face to face, and a little embarrassed.

"Ah! Léon! Really—I don't know—if I ought,' she whispered. Then with a more serious air, 'Do you know, it is very improper?'

"How so?' replied the clerk. 'It is done at Paris.'

"And that, as an irresistible argument, decided her."

We know now, gentlemen, that the fall did not take place in the cab. Through a scruple which honors him, the editor of the *Revue de Paris* has suppressed the passage of the fall in the cab. But if the *Revue* lowered the blinds of the cab, it does allow us to penetrate into the room where they found a rendezvous.

Emma wished to leave it, because she had given her word that she would return that evening.

"Moreover, Charles expected her, and in her heart she felt already that cowardly docility that is for some women at once the chastisement and atonement of adultery."

Once upon the sidewalk, Léon continued to walk; she followed him as far as the hotel; he mounted the stairs, opened the door and entered. What an embrace! Words followed each other quickly after the kisses. They told the disappointments of the week, their presentiments, their fears about the letters; but now all was forgotten, and they were face to face, with their laugh of voluptuousness and terms of endearment.

"The bed was large, of mahogany, in the shape of a boat. The curtains were in red levantine, that hung from the ceiling and bulged out too much towards the bell-shaped bed-side; and nothing in the world was so lovely as her brown head and white skin standing out against this purple colour, when, with a movement of shame, she crossed her bare arms, hiding her face in her hands.

"The warm room, with its discreet carpet, its gay ornaments, and its calm light, seemed made for the intimacies of passion."

We are told what happened in that room. Here is still a passage, very important as a piece of lascivious painting:

"How they loved that dear room, so full of gaiety, despite of its rather faded splendour! They always found the furniture in the same place, and sometimes hairpins that she had forgotten the Thursday before under the pedestal of the clock. They lunched by the fireside on a little round table, inlaid with rosewood. Emma carved, put bits on his plate with all sorts of coquettish ways, and she laughed with a sonorous and libertine laugh when the froth of the champagne ran over from the glass to the rings on her fingers. They were so completely lost in the possession of each other that

they thought themselves in their own house, and that they would live there till death, like two spouses eternally young. They said 'our room,' 'our carpet,' she even said 'my slippers,' a gift of Léon's, a whim she had had. They were pink satin, bordered with swansdown. When she sat on his knees, her leg, then too short, hung in the air, and the dainty shoe, that had no back to it, was held on only by the toes to her bare foot.

"He for the first time enjoyed the inexpressible delicacy of feminine refinements. He had never met this grace of language, this reserve of clothing, these poses of the weary dove. He admired the exaltation of her soul and the lace on her petticoat. Besides, was she not 'a lady' and a married woman—a real mistress, in fine?"

This, gentlemen, is a description which leaves nothing to be desired, I hope, from the point of view of conviction. Here is another, or rather here is the continuation of the same scene:

"She used some words which inflamed him, with some kisses which drew forth his soul. Where had she learned these caresses almost immaterial, so profound and evasive were they?"

Oh! I well understand, gentlemen, the disgust inspired in her by that husband who wished to embrace her upon her return; I comprehend admirably that after a rendezvous of this kind, she felt with horror at night, "that man against her flesh stretched out asleep."

That is not all, for according to the last tableau that I cannot omit, she came to be weary of her voluptuousness.

"She was constantly promising herself a profound felicity on her next journey. Then she confessed to herself that she felt nothing extraordinary. This disappointment quickly gave way to a new hope, and Emma returned

to him more inflamed, more eager than ever. She undressed hastily, tearing off the thin laces of her corset that nestled around her hips like a gliding snake. She went on tip-toe, barefooted, to see once more that the door was closed; then, pale, serious, and without speaking, with one movement she threw herself upon his breast with a long shudder."

I notice here two things, gentlemen, an admirable picture, the product of a talented hand, but an execrable picture from a moral point of view. Yes, M. Flaubert knows how to embellish his paintings with all the resources of art, but without the discretion of art. With him there is no gauze, no veils, it is nature in all her nudity, in all her crudity!

Still another quotation:

"They knew one another too well for any of those surprises of possession that increase its joys a hundred-fold. She was as sick of him as he was weary of her. Emma found again in adultery all the platitudes of marriage."

The platitudes of marriage and the poetry of adultery! Sometimes it is the pollution of marriage, sometimes the platitudes, but always the poetry of adultery. These, gentlemen, are the situations which M. Flaubert loves to paint, and which, unfortunately, he paints only too well.

I have related three scenes: the scene with Rodolphe, and you have seen the fall in the forest, the glorification of adultery, and this woman whose beauty became greater with this poesy. I have spoken of the religious transition, and you saw there a prayer imprinted with adulterous language. I have spoken of the second fall, I have unrolled before you the scenes which took place with Léon. I have shown you the scene of the cab—suppressed—and I have shown you the picture of the room and the bed. Now that we believe your convictions are formed, we come to the last scene,—that of the punishment.

Numerous excisions have been made, it would appear, by the *Revue de Paris*. Here are the terms in which M. Flaubert complains of it:

"Some consideration which I do not appreciate has led the *Revue de Paris* to suppress the number of December 1st. Its scruples being revived on the occasion of the present number, it has seen fit to cut out still more passages. In consequence, I wish to deny all responsibility in the lines which follow; the reader is informed that he sees only fragments and not the complete work."

Let us pass, then, over these fragments and come to the death. She poisons herself. She poisons herself, why? Ah! it is a very little thing, is death, she thinks; I am going to fall asleep and all will be finished. Then, without remorse, without an avowal, without a tear of repentance over this suicide which is brought about by adulteries in the night watches, she goes to receive the sacrament for the dying. Why the sacrament, since in her last thought she is going to annihilation? Why, when there is not a tear, not a sigh of the Magdalene over her crime of infidelity, her suicide, or her adulteries?

After this scene comes that of extreme unction. These are holy and sacred words for all. It is with these words that our ancestors have fallen asleep, our fathers and our relatives, and it is with them that one day our children will see us sleep. When one wishes to make use of them, it should be done with exactness; it is not necessary, at least to accompany them with the voluptuous image of a past life.

You know how the priest makes the holy unctions upon the forehead, the ears, upon the mouth, the feet, pronouncing at the same time the liturgical phrases: *quidquam per pedes, per auras, per pectus*, etc., always following with the words *misericordia* ... sin on one side and pity on the other. These

holy, sacred words should be reproduced exactly; and if they cannot be reproduced exactly, at least nothing voluptuous should be put with them.

"She turned her face slowly and seemed filled with joy on seeing suddenly the violet stole, no doubt finding again, in the midst of a temporary lull in her pain, the lost voluptuousness of her first mystical transports, with the visions of eternal beatitude that were beginning.

"The priest rose to take the crucifix; then she stretched forward her neck as one who is athirst, and gluing her lips to the body of the Man-God, she pressed upon it with all her expiring strength the fullest kiss of love that she had ever given. Then he recited the *Misereatur* and the *Indulgentiam*, dipped his right thumb in the oil and began to give extreme unction. First, upon the eyes, that had so coveted all worldly pomp; then upon the nostrils, that had been greedy of the warm breeze and amorous odours; then upon the mouth that had uttered lies, that had been curled with pride and cried out in lewdness; then upon the hands, that had delighted in sensual touches; and finally upon the soles of the feet, so swift of yore, when she was running to satisfy her desires, and that would now walk no more."

Now, in the prayers for the dying which the priest recites, at the end or at the close of each verse occur these words: "Christian soul, go out to a higher region." They are murmured at the moment when the last breath of the dying escapes from his lips. The priest recites, etc.

"As the death-rattle became stronger the priest prayed faster; his prayers mingled with the stifled sobs of Bovary, and sometimes all seemed lost in the muffled murmur of the Latin syllables that tolled like a passing-bell."

After the fashion of alternating these words, the author has tried to make for them a sort of reply. He puts upon the sidewalk a blind man who intones

a song of which the profane words are a kind of response to the prayers for the dying.

"Suddenly on the pavement was heard a loud noise of clogs and the clattering of a stick; and a voice rose—a raucous voice—that sang—

"Maids in the warmth of a summer day
Dream of love and of love away.
The wind is strong this summer day,
Her petticoat has flown away."

This is the moment when Madame Bovary dies.

Thus we have here the picture: on one side the priest reciting the prayers for the dying; on the other the hand-organ player who excites from the dying woman

"an atrocious, frantic, despairing laugh, thinking she saw the hideous face of the poor wretch that stood out against the eternal night like a menace.... She fell back upon the mattress in a convulsion. They all drew near. She was dead."

And then later, when the body is cold, above all should the cadaver, which the soul has just left, be respected. When the husband is there on his knees, weeping for his wife, when he extends the shroud over her, any other would have stopped, but M. Flaubert makes a final stroke with his brush:

"The sheet sank in from her breast to her knees, and then rose at the tips of her toes."

This the scene of death. I have abridged it and have grouped it after a fashion. It is now for you to judge and determine whether there is a mixture

of the sacred and the profane in it, or rather, a mixture of the sacred and the voluptuous.

I have related the romance, I have brought a charge against it and, permit me to say, against the kind of art that M. Flaubert cultivates, the kind that is realistic but not discreet. You shall see to what limits he has gone. A copy of the *Artiste* lately came to my hand; it is not for us to make accusations against the *Artiste*, but to learn to what school M. Flaubert belongs, and I ask your permission to read you some lines, which have nothing to do with M. Flaubert's prosecuted book, only to show to what a degree he excels in this kind of painting. He loves to paint temptations, especially the temptations to which Madame Bovary succumbed. Well, I find a model of its kind in the lines to follow, from the *Artiste*, for the month of January, signed *Gustave Flaubert*, upon the temptation of Saint Anthony. Heaven knows it is a subject upon which many things might be said, but I do not believe it possible to give more vivacity to the image, stronger lines to the picture. Apollonius says to Saint Anthony:—

"What is knowledge? What is glory? Wouldst thou refresh thine eyes under the humid jasmines? Wouldst thou feel thy body sink itself, as in a wave, in the sweet flesh of swooning women?"

Ah! well! here is the same colour, the same strength of the brush, the same vivacity of expression!

To resume. I have analyzed the book, I have related the story without forgetting a page, I have then made the charge, which was the second part of my task. I have exhibited some of the portraits, I have shown Madame Bovary in repose, by the side of her husband, in contact with those whom she could not tempt, and I have pointed out to you the lascivious colour of that portrait! Then I have analyzed some of the great scenes: the fall with Rodolphe, the religious transition, the meetings with Léon, the death scene,

and in all this I find the double count of offense against public morals and against religion.

I had need of but two scenes: Do you not see the moral outrage in the fall with Rodolphe? Do you not see the glorification of adultery in it? And then, the religious outrage, which I find in the drawing of the confession, in the religious transition, and finally, the scene of death.

You have before you, gentlemen, three guilty ones: M. Flaubert, the author of the book, M. Pichat who accepted it, and M. Pillet, who printed it. In this matter, there is no misdemeanor without publicity, and all those concerned in the publicity should be equally blamed. But we hasten to say that the manager of the *Revue* and the printer are only in the second rank. The principal offender is the author, M. Flaubert; M. Flaubert who admonished by a note from the editor, protested against the suppression which had been made in his work. After him comes M. Laurent Pichat, from whom you will demand a reason, not for the suppression which he has made, but of that which he should have made; and finally comes the printer, who is a sentinel at the door of scandal. M. Pillet, besides, is an honourable man against whom I have nothing to say. We ask but one thing of you, which is to apply the law to him. Printers should read; when they do not read or have read what they print, it is at their own risk and peril. Printers are not machines; they have a privilege, they take an oath, they are in a special situation and they are responsible. Again, they are, if you will permit the expression, like an advanced guard; if they allow a misdemeanor to pass, it is like allowing the enemy to pass. Make the penalty as mild as you will for Pillet, be as indulgent as you like with the manager of the *Revue*; but as for Flaubert, the principal culprit, it is for him you should reserve your severities!

My task is accomplished; we await the objections on the part of the defense. The general objection will be: But after all the romance is moral on the whole, for is not adultery punished?

To this objection there are two replies: I believe that in a hypothetically moral work, a moral conclusion cannot be reached by the presentation of the lascivious details we find here. And again I say: that the work is not moral at the foundation.

I say, gentlemen, that lascivious details cannot be covered by a moral conclusion, otherwise one could relate all the orgies imaginable, describe all the turpitude of a public woman, making her die in a charity bed of a hospital. It would be allowable to study and depict all the poses of lasciviousness. It would be going against all the rules of good sense. It would place the poison at the door of all, the remedy at the doors of few, if there were any remedy. Who are the ones to read M. Flaubert's romance? Are they men who are interested in political or social economy? No! The light pages of *Madame Bovary* fall into hands still lighter, into the hands of young girls, sometimes of married women. Well, when the imagination has been seduced, when this seduction has fallen upon the heart, when the heart shall have told it to the senses, do you believe that cold reason would have much power against this seduction of sense and sentiment? And then, man should not clothe himself too much in his power and his virtue; man has low instincts and high ideas, and, with all, virtue is only the consequence of an effort oftentimes laborious. Lascivious pictures have generally more influence than cold reason. This is what I respond to that theory, that is, as a first response; but I have a second.

I hold that the romance of *Madame Bovary*, from a philosophic point of view, is not moral. Without doubt *Madame Bovary* died of poison; she suffered much, it is true; but she died at her own time and in her own way,

not because she had committed adultery but because she wished to; she died in all the prestige of her youth and beauty; she died after having two lovers, leaving a husband who loved her, who adored her, who found Rodolphe's portrait, his letters and Léon's, who read the letters of a woman twice an adulteress, and who, after that, loved her still more, even on the other side of the tomb. Who would condemn this woman in the book? No one. Such is the conclusion. There is not in the book a person who condemns her. If you can find one wise person, if you can find one single principal virtue by which the adulteress is condemned, I am wrong. But if in all the book there is not a person who makes her bow her head, there is not an idea, a line, by virtue of which the adulteress is scourged, it is I who am right, and the book is immoral!

Should it be in the name of conjugal honor that the book be condemned? No, for conjugal honor is represented here by a devoted husband who, after the death of his wife, meets Rodolphe and seeks to find upon the face of the lover the features of the woman he loved. I ask you whether you could stigmatize this woman in the name of conjugal honor when there is not in the book a single word where the husband does not bow before the adulteress?

Should it be in the name of public opinion? No, for public opinion is personified in a grotesque being, in the Homais apothecary surrounded by ridiculous persons whom this woman dominated.

Will you condemn it in the name of religious sentiment? No, for this sentiment you see personified in the curate Bournisien, a priest as grotesque as the apothecary, believing only in physical suffering, never in moral, and little more than a materialist.

Will you condemn it in the name of the author's conscience? I know not what the author thinks, but in chapter 10, the only philosophical one of his

book, I read the following:

"There is always after the death of any one a kind of stupefaction; so difficult is it to grasp this advent of nothingness and to resign ourselves to believe in it."

This is not a cry of unbelief, but it is at least a cry of scepticism. Without doubt it is difficult to comprehend and believe it, but why this stupefaction which manifest's itself at death? Why? Because this surprise is something that is a mystery, because it is difficult to comprehend and judge, although one must resign himself to it. And as for me, I say that if death is the beginning of annihilation, that if the devoted husband feels his love increase on learning of the adulteries of his wife, that if opinion is represented by a grotesque being, that if religious sentiment is represented by a ridiculous priest, one person alone is right, and that is Emma Bovary,—Messalina was right against Juvenal.

This is the conclusion of the book, drawn not by the author, but by a man who reflects and goes to the depths of things, by a man who has sought in this book for a person who could rule this woman. There is none there. The only person who ruled was Madame Bovary. It is necessary to seek elsewhere than in the book; we must look to Christian morals, which are the foundation of modern civilization. By this standard all explains itself, all becomes clear.

In its name the adulteress is stigmatized, condemned, not because her act is an imprudence, exposing her to disillusion and regrets, but because it is a crime against the family. You stigmatize and condemn suicide, not because it is a foolish thing (the fool is not responsible), not because it is a cowardly act (for it sometimes requires a certain physical courage), but because it is a scorn of duty in the life we are living, and the cry of unbelief in the life to come.

This code of morals stigmatizes realistic literature, not because it paints the passions: hatred, vengeance, love—the world sees but the surface and art should paint them—but not paint them without bridle, without limits. Art without rules is not art. It is like a woman who discards all clothing. To impose upon art the one rule of public decency is not to subject it, not to dishonor it. One grows great only by rule. These, gentlemen, are the principles which we profess, this the doctrine which we defend with conscience.

* * * * *

Plea for the Defense, by

M. SENARD

Gentlemen, M. Gustave Flaubert has been accused before you of making a bad book; of having, in this book, outraged public morals and religion. M. Gustave Flaubert is beside me and affirms before you that he has made an honest book; he affirms before you that the thought in his book, from the first line to the last, is a moral thought; and that, if it were not perverted (and you have seen during the last hour how great a talent one may have for perverting a thought) it would be (and will become again presently) for you, as it has been already for the readers of the book, an eminently moral and religious thought capable of being translated into these words: the excitation of virtue through the horror of vice.

I bring M. Gustave Flaubert's affirmation here to you, and I put it fearlessly in the light of the prosecuting attorney's speech, for this affirmation is grave; and it is through the personality of its maker, through the circumstances which have led to the writing of the book, that I am going to make it understood to you.

The affirmation is grave on account of the personality that makes it: and, permit me to say to you that M. Gustave Flaubert is not to me an unknown man who has instructions to give me, and who has need of recommendations from me—I speak not only of his morality but of his position. I come here, into this precinct, fulfilling a duty of conscience after reading the book, after feeling myself exalted, by this reading, in all that is honest and profoundly religious. But, at the same time that I come fulfilling a duty of conscience, I come to fulfill a duty of friendship. I remember, and I can never forget, that his father was an old friend of mine. His father, by whose friendship I was long honoured, to the last day of his life, his father,—permit me to say his illustrious father,—was for thirty years surgeon-in-chief at the hospital at Rouen. He was in charge of the Dupuytren dissecting room, and in giving to science great instruction, he has endowed it with some great names; I will mention but one, that of Cloquet. He has not only left for himself a good name in science, he has left a grand memento in his immense service to humanity. And at the same time I am recalling my bond of friendship with him, I wish to tell you that his son, who has been dragged into Court for an outrage against morals and religion, this son is the friend of my children, as I was the friend of his father. I know his thought, I know his intentions, and the counsellor has the right here of placing himself as a personal guaranty of his client.

Gentlemen, a great name and great memories have obligations. Children were not wanting to M. Flaubert. There were three of them, two sons, and a daughter who died at twenty-one. The eldest has been judged worthy to succeed his father; and he is to-day, as he has been for many years, carrying on the mission which his father conducted for thirty years. The younger son is here; he is at your bar. In leaving them a considerable fortune and a great name, their father has left upon them the obligation of being men of intelligence and of heart; that is to say, useful men. The brother of my client has been thrown into a career where each day brings its own service. This

one has devoted his life to study and to letters, the work before you being his first work. This first work, gentlemen, which provokes the passions, as the Government Attorney has said, is the result of long study and much thought. M. Gustave Flaubert is a man of serious character, turning his attention, through his very nature, to serious subjects, to sad subjects. He is not the man whom the prosecuting attorney, in fifteen or twenty lines bitten out here and there, has presented to you as a maker of lascivious pictures. No; there is in his nature, I repeat, all that is gravest, most serious, and even the saddest that one could imagine. His book, by restoring a single phrase, by putting beside the quoted lines the lines which precede and follow, will take on its veritable colour, as soon as you understand the intentions of the author. And, of the too clever words to which you have listened, there will remain to you only the memory of a sentiment of profound admiration for a talent which can thus transform things.

I have told you that M. Gustave Flaubert was a serious and grave man. His studies, conforming to his nature, have been serious and broad. They have embraced not only all branches of literature, but the right branches. M. Flaubert is not the man to be content with observations of even the best where he lived; he has sought out the best in other places; *Qui mores multorum vidit et urbes*.

After his father's death and the completion of his studies at college, he visited Italy, and from 1848 to 1852 traveled through the countries of the Orient,—Egypt, Palestine, Asia Minor—in which countries, doubtless, a man traveling through and bringing to his travels a fine intelligence, could acquire something exalted, something poetic, as well as the colour and prestige of style which the public minister has just pointed out, to make good the misdemeanor that he imputes. That prestige of style, those literary qualities pointed to with *éclat* in this debate, are there, but after no fashion can they be brought up for indictment.

Since his return, in 1852, M. Gustave Flaubert has written and sought to produce in a grand outline the result of his close and serious studies, the result of what he had gathered in his journeys.

What is the outline he has chosen, the subject he has taken, and how has he treated it? My client belongs to any of the schools, whose names I have just learned in the Attorney's speech. Heaven knows he belongs to the realistic school, in that he occupies himself with the reality of things. He belongs to the psychological school, in the sense that it is not material things which engage him, but human sentiment and the development of the passions wherever the human being is placed. He belongs to the romantic school less perhaps than to any other, because, if romanticism appears in his book, as does realism, it appears only in some ironical expressions here and there, which the public attorney has taken seriously. What M. Flaubert especially wished was to take a subject of study from real life, creating from it some true types of the middle class, arriving finally at some useful result. Yes, what has most occupied my client in the studies to which he has devoted himself, is precisely this useful aim, followed out in putting upon the scene three or four personages from actual society, living in the conditions of real life, and presenting them to the eyes of the reader in a true picture of what is met with very often in the world.

The Prosecuting Attorney, summing up his opinion of *Madame Bovary*, has said:

"The second title of this work might be: *The Story of the Adulteries of a Provincial Woman*."

I protest vigorously against this title. This alone, had I not listened to your speech from beginning to end, would prove to me the prejudice in which you are firmly bound. No! the second title of this work is not: *The Story of the Adulteries of a Provincial Woman*; it is, if it is absolutely

necessary to have a second title: the story of the education too often met with in the provinces; the story of the perils to which such an education leads; the story of degradation, of dishonesty, of suicide, considered as a consequence of a first fault, and a fault led up to through wrong-doing, by which a young woman is often carried away. It is the story of an education, and the deplorable life of which such an education is often the preface. This is what M. Flaubert desired to paint, and not the adulteries of a woman of the provinces. You will see this at once on reading the incriminated book.

Now, the prosecuting attorney perceives in all this, and through it all, a lascivious colour. If it were possible to take the number of lines of the book which he has cut out, and put parallel to them other lines that he has left, we should have a total proportion of about one to five hundred; and you would see that this proportion of one to five hundred was in no way of a lascivious colour; it exists only under the conditions of being cut out and commented upon.

Now, what has M. Flaubert desired to paint? First, education given to a woman which is above the conditions to which she was born—something that too often happens among us, it must be confessed. Then, the mixture of discordant elements that are thus produced in the intelligence of the woman; and then when marriage comes, especially if the marriage is not in accordance with the education, but rather with the conditions under which the woman was born, the author explains all these facts which occur in the situation that he depicts.

What has he shown? He shows a woman entering upon vice because of a disappointing match; then vice in its last degree, degradation and wretchedness. Presently, when through the reading of several passages, I shall have made you acquainted with the book as a whole, I shall demand of this tribunal the privilege of their accepting the question on these terms:

Would this book, put into the hands of a young woman, have the effect of leading her towards easy pleasures, towards adultery, or, on the contrary, would it show her the danger of the first step, and bring upon her a shiver of horror? The question thus put, your conscience would soon decide.

I have here stated that M. Flaubert wished to paint a woman who, instead of trying to adapt herself to the conditions in which she was placed, to her position and her birth, instead of seeking to make herself a part of the life to which she belonged, was occupied with a thousand foreign aspirations drawn from an education too far above her; instead of accommodating herself to the duties of her position, of being the tranquil wife of a country doctor with whom she should pass her days, in place of seeking her happiness in her house and in her marriage, sought it in interminable fancies; and then, meeting a young man upon the way who coquetted with her, she played the same game with him (Heaven knows they were both inexperienced enough!) urging herself on by degrees, and frightened when she turned to the religion of her early years and found it insufficient. We shall see presently why this was so. At first, the young man's ignorance and her own preserves her from danger. But she soon meets a man, of the kind of which there are too many in the world, who takes possession of her—this poor woman, already perverted and ready to stray. Here is the main point; now it is necessary to see what the book makes of it.

The Public Minister becomes incensed, and I believe wrongly so from the standard of conscience and the human heart, over that first scene, where Madame Bovary finds a sort of pleasure, of joy, in having broken her prison, and returns to her home saying: "I have a lover." Do you believe that this is not the first cry of the human heart! The proof is between you and me. But we must look a little further, and then we shall see that, if the first moment, the first instant of the fall, excites in this woman a sort of transport of joy, of delirium, in some lines farther on the deception makes itself

manifest and, following the expression of the author, she seems humiliated in her own eyes.

Yes, deception, grief, and remorse come to her at the same time. The man in whom she has confided, to whom she has given herself up, has only made use of her for the moment, as he would a plaything; remorse and regret now rend her heart. It has shocked you to hear this called the disillusion of adultery; you would have preferred *pollution* at the hand of a writer who placed before you a woman who, not having comprehended marriage, felt herself *polluted* by contact with her husband, and who, having sought her ideal elsewhere, found the *disillusions* of adultery. This word has shocked you; in the place of *disillusions*, you would have wished *pollution* of adultery. This tribunal shall be the judge. As for me, if I had depicted the same personage I would have said to her: Poor woman! if you believe that your husband's kisses are monotonous and wearisome, if you have found only platitudes—this word has been especially brought to our notice—the platitudes of marriage—if you seem to see pollution in a union where love does not preside, take care, for your dreams are an illusion, and you will one day be cruelly deceived. But this man, gentlemen, who knows how to speak strongly, makes use of the word pollution to express what we would have called disillusion, and he has used the true word, although vague to him who can bring to it no intelligence. I would have liked better his not speaking so strongly, his not pronouncing the word *pollution*, but rather averting the woman from deception, from disillusion, and saying to her: Where you believe you will find love, you will find only libertinism; where you think you will find happiness, there is only bitterness. A husband who goes tranquilly about his affairs, who kisses you, puts on his house cap and eats his soup with you, is a prosaic husband revolting to you; you aspire to a man who will love you, idolize you; poor child! that man will be a libertine who will have taken you for a minute for the sake of playing with you. There will be some illusion about it the first time, perhaps the second;

you may come back home joyous, singing the song of adultery. "I have a lover!" but the third time you will not wish to go to him, for the disillusion will have come. The man you have dreamed of will have lost all his prestige; you will have found again in love the platitudes of marriage, and this time with scorn, disdain, disgust and poignant remorse.

This, gentlemen, is what M. Flaubert has said, what he has painted, what is in each line of his book; and this is what distinguishes his work from all other works of the kind. Under his hand, the great irregularities of society figure on each page, and adultery walks abroad full of disgust and shame. He has brought into the common relations of life the most powerful teaching that can be given to a young woman. And Heaven knows that to those of our young women who do not find in lofty, honest principle and stern religion enough to keep them steady in the accomplishment of their duties as mothers, or who do not find it in that resignation and practical science of life which bids us accommodate ourselves to what we have, but who carry their dreams to the outside (and the most honest, the most pure of our young women, in the prosaic life of their households, are sometimes tormented by that which is going on outside), a book like this would bring but one reflection. Of that you may be sure. And this is what M. Flaubert has intended.

And notice carefully one thing: M. Flaubert is not the man who has painted a charming adultery for you, in order to arrive later with the *Deus ex machina*; no, you are carried too quickly on to the last page. Adultery with him is only a series of torments, remorse and regret; and then he arrives at the final, frightful expiation. It is excessive. If M. Flaubert sins, it is through excess; and I will show you presently what is meant by this. The expiation is not allowed to wait, and it is that which makes the book eminently moral and useful. It does not promise the young woman some beautiful years at the end of which she can say: after this, one is willing to

die. No! from the second day there is bitterness and disillusion. The conclusion for morality is found in each line of the book.

This book is written with a power of observation to which the Government Attorney has rendered justice. And it is here that I would call your attention to it, because if the accusation is without foundation, it must fall. This book is written with a power truly remarkable for observing the smallest details. An article in the *Artiste*, signed Flaubert, has served as yet another text for the accusation. Let the Government Attorney note, first that this article is foreign to the indictment; then, that we will hold him innocent and moral in the eyes of this tribunal on one condition, which is, that he will have the goodness to read the entire article from the place of the cutting.

The most noticeable thing in M. Flaubert's book is what some accounts have called a fidelity wholly Daguerreian in the reproduction of the type of things, and in the intimate nature of the thought of the human heart;—and this reproduction becomes more powerful still by the magic of his style. Now notice, that if he had applied this fidelity only to the scenes of degradation, you could say with reason: the author has been pleased to paint the scenes of degradation with that power of description which is peculiarly his own. From the first to the last page of his book, he keeps close to all the facts in Emma's life, without any kind of reserve, from her infancy in her father's house, to her education in the convent, sparing nothing. And those of us who have read the book from beginning to end can say—and this is a notable point which should put him in a favorable light with you, not only bringing him acquittal, but removing from him every kind of misunderstanding—that when he comes to the difficult parts, precisely at the time of degradation, in place of doing as some classic authors have done, (as the Public Attorney knows full well, but whom he forgot when he wrote his address) a few pages of whose writings I have with me here, (not to read to you but for you to run through in Court—and I might quote a few

lines here presently), in place of doing as our great classic authors, our great masters have done, who never hesitate at description when they have come to the scene of a union of the senses between man and woman, M. Flaubert contents himself with a word. All his descriptive power disappears, because his thought is chaste; because where he might write in his own manner and with the magic of his style, he feels that there are some things that should not be described or even touched upon. The Public Attorney finds that he has still said too much. When I have shown him some men who, in great philosophical works, have delighted in descriptions of these things, and when in the light of this fact I have shown that this man, who possesses the descriptive faculty to so high a degree and who, far from using it, desists and abstains from it, I shall indeed have the right to ask why this accusation has been brought?

Nevertheless, gentlemen, just as he has described to us the pleasant cradle of Emma's infancy, with its foliage, its rose-colored and white flowers which gladdened her with their blossoms and their perfume, so he has described her when she went out from there into other paths, into paths where she found mire, where her feet became soiled from its contact, when the mire rose higher than herself and—he need not have told it! But that would be to suppress the book completely, and I am going far enough to say would suppress its moral element under a pretext of defending it; for if a fault cannot be shown, if it cannot be pointed out, if in a picture of real life which aims to show, through thought, peril, fall and punishment, you would debar painting such as this, it is evident you would cut out of the book its whole purpose.

This book was not a matter of a few hours' amusement for my client. It represents two or three years of incessant study. And now I am going to tell you something more: M. Flaubert who, after so many years of labor, so many of study, so many journeys, so many notes culled from authors he had

read,—and Heaven grant you may see the fountain-head from which he has drawn, for this strange fact will take upon itself his justification—M. Flaubert (and his lascivious colour)—you will find impregnated wholly with Bossuet and Massillon. It is in the study of these authors that we shall presently find him seeking, not to plagiarize, but to reproduce in his descriptions the thoughts and colours employed by them. And can you believe, after all that, having done this work with so much love for it, and with a decided purpose, that, full of confidence in himself, and after so much study and meditation, he would wish to throw himself immediately into the arena? He would have done it, no doubt, had he been an unknown man, if his name had belonged to himself in sole ownership, had he believed himself able to dispose of it and use it as it seemed good to him; but, I repeat, he is one of those upon whom rests the obligation of rank. His name is Flaubert, he is the second son of M. Flaubert, and he has desired to make a place for himself in literature, profoundly respecting the moral and religious phases of it,—not through the notoriety of a lawsuit, for such a purpose could not enter his thoughts—but through personal dignity, not wishing his name to be at the head of a publication that did not seem to some persons and to those in whom he had faith, worthy of being published. M. Flaubert read in fragments, and even in totality, to friends holding high places in the world of letters, the pages which he hoped some day to print, and I assure you that not one of them has been offended by what has just now excited such lively severity on the part of the Government Attorney. No one even thought of it. They simply examined and studied the literary value of the book. As to the moral purpose, it is so evident, so written in every line in terms so unequivocal that there was no need of raising the question.

Reassured upon the value of the book, encouraged, furthermore, by the most eminent men of the press, M. Flaubert thought only of printing it and giving it to the public. I repeat: everyone was unanimous in rendering

homage to its literary merit, to its style, and at the same time to the excellent thought that pervaded it, from the first line to the last. And when this action was brought it was not he alone who was surprised and profoundly troubled, but, permit me to say, we, who cannot understand the action, and I myself most of all, who had read the book with a very lively interest as soon as it was published. But we are his intimate friends. Heaven knows that there are some shades of meaning that might escape us in our easy-going habits which never could escape women of great intelligence, of great purity and unquestioned chastity. These are not names which can be pronounced in this audience, but if I could tell you what has been said to Flaubert, what has been said to me, even, by mothers of families who have read this book, if I could tell you their astonishment, after receiving from that reading an impression so good that they believed they should thank the author for it, if I could tell you their astonishment, their grief, when they learned that this book was thought to oppose public morals and religious faith, the faith of their whole life, God knows there would be in the sum of this appreciation sufficient to fortify me, had I need of being fortified for this combat with the Public Attorney.

However, in the midst of all the appreciative voices of contemporaneous literature there is one which I wish to mention to you. There is one who is not only respected by reason of a grand and beautiful character, who, in the midst of adversity, of suffering even, has struggled courageously each day; who is not only great by virtue of many deeds useless to recall here, but great through his literary works which must be recalled because here he is an authority; great especially through the purity which exists in all his works, through the chastity of all his writings: Lamartine.

Lamartine did not know my client; he did not know that he existed. Lamartine, at his home in the country, read *Madame Bovary* in each number

of the *Revue de Paris*, and Lamartine found there such power that it recurred to him again and again, as I am going to tell you.

After some days, Lamartine returned to Paris, and the next day informed himself where M. Gustave Flaubert lived. He sent to the *Revue* to learn where M. Gustave Flaubert lived, who had published in the magazine some articles under the title of *Madame Bovary*. He then directed his secretary to go and present his compliments to M. Flaubert, to express for him the satisfaction he had found in reading his book, and also his desire to see the new author who revealed himself in an essay of that order.

My client went to Lamartine's house; and he found in him not only a man who encouraged him, but who said to him:

"You have made the best book I have read in twenty years."

In a word, his praise was such that, in his modesty, my client scarcely liked to repeat it to me. Lamartine proved to him that he had read each number, proving it most graciously by repeating entire pages from them. Lamartine only added:

"While I have read even to the last page without reserve, I did blame the last pages. You have hurt me, you have literally made me suffer! The punishment is beyond all proportion to the crime; you have created a pitifully frightful death! Assuredly the woman who defiles the marriage bed should expect punishment, but this is horrible; it is a punishment such as I have never seen. You have gone too far; you have done mischief to my nerves. That power of description which you have applied to the last moment of death has left upon me an indelible suffering!"

And when Gustave Flaubert said to him:

"But, Monsieur de Lamartine, do you know that I have been indicted and summoned to a court of correction for an offense against public morals and religion for having made a book like that?"

Lamartine answered:

"I believe that I have been all my life a man who, in literary works as well as others, comprehends fully what makes for public and religious morals; my dear child, it is not possible to find in France a tribunal that will convict you."

This is what passed between Lamartine and Flaubert yesterday, and I have the right to say to you that this approval is among those which are worthy to be well weighed.

This well understood, let us see how my conscience could tell me that *Madame Bovary* was a good book, a good deed. And I ask your permission to add that I do not take to these things easily, this facility is not my habit. Some literary works I take up which, although emanating from our great writers, do not remain two minutes before my eyes. I will pass to you in the council chamber some lines that I took no delight in reading, and I will ask your permission to say to you that when I came to the end of M. Flaubert's work, I was convinced that a cutting made by the *Revue de Paris* was the cause of all this. I shall ask you further to add my appreciation to this highest and most distinguished appreciation which I am about to mention.

Here, gentlemen, is a portfolio filled with the opinions of all the literary men of our time upon the work with which we are engaged, among whom are some of the most distinguished, expressing their astonishment upon reading this new work, at once so moral and so useful!

Now, how has it come about that a work like this can incur a process of law? If you will permit me, I will tell you. The *Revue de Paris*, whose reading committee had read the work in its entirety, for the manuscript was sent long before it was published, evidently found nothing to criticise. When it came time to print the copy of December 1st, 1856, one of the directors of the *Revue* became affrighted at the scene in the cab. He said: "This is not conventional, we must suppress it." Flaubert was offended by the suppression. He was not willing that it should be made unless a note to that effect were placed at the bottom of the page. It was he who exacted the note. It is he who, on account of his self-respect as an author, neither wishing to have his work mutilated nor, on the other hand wishing to make trouble for the *Revue*, said: "You may suppress it if it seems best to you, but you will state that you have suppressed something." And they agreed upon the following note:

"The directors have seen the necessity of suppressing a passage here which did not seem fitting to the *Revue de Paris*; we give notice of it to the author."

Here is the suppressed passage which I am going to read to you. We have only a proof, which we had great difficulty in procuring. The first part has not a single correction; one word is corrected in the second part.

"'Where to, sir?' asked the coachman.

"'Where you like,' said Léon, forcing Emma into the cab.

"And the lumbering machine set out. It went down the Rue Grand-Pont, crossed the Place des Arts, the Quai Napoléon, the Pont Neuf, and stopped short before the statue of Pierre Corneille.

"'Go on,' cried a voice that came from within.

"The cab went on again, and as soon as it reached the Carrefour Lafayette, set off down-hill, and entered the station at a gallop.

"No, straight on!" cried the same voice.

"The cab came out by the gate, and soon having reached the Cours, trotted quietly beneath the elm-trees. The coachman wiped his brow, put his leather hat between his knees, and drove his carriage beyond the side alley by the meadow to the margin of the waters.

"It went along by the river, along the towing-path paved with sharp pebbles, and for a long while in the direction of Oyssel, beyond the isles.

"But suddenly it turned with a dash across Quatre-mares, Sotteville, La Grande-Chaussée, the Rue d'Elbeuf, and made its third halt in front of the Jardin des Plantes.

"Get on, will you?" cried the voice more furiously.

"And at once resuming its course, it passed by Saint-Sever, by the Quai des Curandiers, the Quai aux Meules, once more over the bridge, by the Place du Champ de Mars, and behind the hospital gardens, where old men in black coats were walking in the sun along the terrace all green with ivy. It went up the Boulevard Bouvreuil, along the Boulevard Cauchoise, then the whole of Mont-Riboudet to the Deville hills.

"It came back; and then, without any fixed plan or direction, wandered about at hazard. The cab was seen at Saint-Pol, at Lescure, at Mont Gargan, at La Rouge-Marc and Place du Gaillardbois; in the Rue Maladrerie, Rue Dinanderie, before Saint-Romain, Saint-Vivien, Saint-Maclou, Saint-Nicaise—in front of the Customs, at the 'Vieille Tour,' the 'Trois Pipes,' and the Monumental Cemetery. From time to time, the coachman on his box

cast despairing eyes at the public-houses. He could not understand what furious desire for locomotion urged these individuals never to wish to stop. He tried to now and then, and at once exclamations of anger burst forth behind him. Then he lashed his perspiring jades afresh, but indifferent to their jolting, running up against things here and there, not caring if he did, demoralised, and almost weeping with thirst, fatigue, and depression.

"And on the harbour in the midst of the drays and casks and in the streets at the corners, the good folk opened large wonder-stricken eyes at this sight, so extraordinary in the provinces, a cab with blinds drawn, and which appeared thus constantly shut more closely than a tomb, and tossing about like a vessel.

"Once, in the middle of the day, in the open country, just as the sun beat most fiercely against the old plated lanterns, a bared hand passed beneath the small blinds of yellow canvas, and threw out some scraps of paper that scattered in the wind, and farther off alighted like white butterflies on a field of red clover all in bloom.

"At about six o'clock, the carriage stopped in a back street of the Beauvoisine Quarter, and a woman got out, who walked with her veil down, and without turning her head.

"On reaching the inn, Madame Bovary was surprised not to see the diligence. Hivert, who had waited for her fifty-three minutes, had at last started.

"Nothing, however, could prevent her setting out; she had promised to return that evening. Moreover, Charles expected her, and in her heart she felt already that cowardly docility that is for some women at once the chastisement and atonement of adultery."

M. Flaubert calls my attention to the fact that the Public Attorney condemned this last clause.

THE GOVERNMENT ATTORNEY:

No, I have pointed it out.

M. SENARD:

It is certain that if he had made a reproach it would have fallen before these words: "at once the chastisement and atonement of adultery." Furthermore, that could be made a matter of reproach with as much foundation as the other quotations, for in all that you have condemned there is no point that can be seriously held.

Now, gentlemen, this kind of fantastic journey having displeased the editors of the *Revue*, it was suppressed. This was certainly excess of reserve on the part of the *Revue*; and it is very certain that it is not an excess of reserve which could furnish material for a lawsuit. You shall see now what has furnished the material. What is not seen, what has been suppressed, comes thus to appear a very strange thing. People imagine many things, and often those which do not exist, as you have seen from the reading of the original passage. Heavens! Do you know what they imagined? Probably that there was in the suppressed passage something analogous to that which you will have the goodness to read in one of the most marvellous romances from the pen of an honorable member of the French Academy, M. Mérimée.

M. Mérimée, in a romance entitled *The Double Mistake*, describes a scene which took place in a postchaise. It is not the locality where the

carriage is that is of importance, it is, as here, in the detail of what is done in the interior. I do not wish to abuse the audience, and will pass the book to the Public Attorney and to the court. If we had written a half, or a quarter part of what M. Mérimée wrote, I should find some embarrassment in the task that has been given me, or rather I should have to modify it; in place of saying what I have said, and what I affirm, that M. Flaubert has written a good book, an honest book, useful and moral, I should say: literature has its rights; M. Mérimée has made a very remarkable literary work, and it is not necessary to show ourselves too particular about details when the whole is irreproachable. I take my stand there; I should acquit, and you will acquit. Great Heavens! It is not by omission that an author can sin in a matter of this kind. And besides, you will have the detail of that which took place in the cab. But as my client himself was content to make a journey, revealing what passed in the interior of the carriage only by a bare hand which appeared under the yellow silk curtains and threw out bits of torn paper which were scattered by the wind and settled down afar off like white butterflies upon a field of red clover all in flower, as my client was content with that, no one knew anything about it and everyone supposed—from the suppression itself—that he had at least said as much as the member of the French Academy. You have seen that there was nothing in it.

Ah, well! this unfortunate suppression has caused the lawsuit! That is to say, when, in the offices where they have charge, and with infinite reason, of inspecting all writings which could offend public morals, they saw this cut, they took warning. I am obliged to declare, and, gentlemen of the *Revue*, allow me to state that they started the work of their scissors two words too far off; they should have begun before they got into the cab. To cut after that was more difficult. This cutting was indeed most unfortunate; but if you have committed the error, gentlemen of the *Revue*, assuredly you will atone for it to-day.

They said in the inspecting office: Take heed of what is to follow, and when the following number appeared, they made war on it to the syllable. The people in the office are not obliged to read all; and when they saw that some one had written about a woman removing all her clothing, they were startled enough without going further. It is true that, differing from our great masters, Flaubert has not taken the trouble to describe the alabaster of her bare arms, throat, etc. He has not said, as did a poet whom we love:

I see her alabaster limbs ardent and pure,
Smooth as ebony, like the lily, coral, roses, veins of azure,
Such indeed, as in former times thou showedst to me
Of nudity embellished and adorned;
When nights slipped by, and pillows soft
Saw thee from my kisses waking and sleeping oft.

He has said nothing like this of André Chénier's. But he finally said:

"She abandoned herself.... Her clothing fell from her."

She abandoned herself! Why not? Is all description to be prohibited? But when one makes an incriminating charge, he should read the whole, and the Government Attorney has not read the whole. The passage he makes the charge against does not stop where he stopped; it has a corrective, and here it is:

"Nevertheless, there was upon this brow covered with cold drops, upon these stammering lips, in these bewildered eyes, in the clasp of these arms something extreme, something vague and lugubrious which seemed to Léon to glide between them in some subtle fashion, as if to separate them."

In the office they did not read that. The Government Attorney just now did not notice it. He only saw this:

"Then, with a single gesture, she allowed all her clothes to fall from her."

And then he cries out: An outrage to public morals! Surely, it is too easy to accuse with a system like this. God forbid that the authors of dictionaries fall under the Government Attorney's hand! Who could escape condemnation if, by means of cutting, not of phrases, but of words, one is to be informed of a list he has made that might offend morals or religion?

My client's first thought, which unfortunately met with resistance, was this: "There is only one thing to do: print the book immediately, not with parts cut out, but the work entire as it left my hands, restoring to it the scene in the cab." I was of his opinion, believing that the best defense of my client would be a complete imprint of the work with special indication of some points to which we would beg to draw the Court's attention. I myself gave the title to this publication: *Memoir of Gustave Flaubert for the prevention of outrage to religious morals brought against him*. I had written on it with my hand: Civil Court, Sixth Chamber, with the signature of the President and the Public Minister. There was a preface in which was written:

"They have indicted me with phrases taken here and there from my book; I can only defend myself with the whole book."

To ask the judges to read an entire romance would be asking much; but we are before judges who love truth, who desire the truth, and who to learn it would not shrink from any fatigue. We are before judges who desire justice and desire it energetically, and who will read, without any kind of hesitation, what we beg them to read. I said to M. Flaubert: "Send this immediately to the printers, and put my name at the bottom beside yours: SENARD, *Counsel*." They had begun the printing; arrangements were made for a hundred copies for our own use; the work went on with extreme rapidity, they were working day and night on it, when the order came to us to discontinue the printing, not of a book, but of a pamphlet in which was

the incriminated work together with explanatory notes. We appealed to the office of the Attorney-General—who informed us that the prohibition was absolute and could not be removed.

Well, so be it! We should have published the book with our notes and observation's; but now I ask you, gentlemen, if your first reading has left you in doubt, to give it a second reading. You will willingly do this, as you desire the truth; and you could not be among those who, when two lines of a man's writing is brought to them, are sure to make it fit any condition that may be. You do not wish a man to be judged upon a few cuttings more or less skilfully made. You would not allow that; you would not deprive him of the ordinary means of defense. Well, you have the book, and although it may be less easy than you might wish, you will make your own divisions, observations, and meanings, because you desire the truth, because truth is necessary for the basis of your judgment, and truth will come from a serious examination of the book.

However, I cannot stop here. The Public Minister has attacked the book, and it is necessary for me to defend it, to complete the quotations he has made, and show the nothingness of the accusation against each incriminated passage; that will be all my defense.

I shall not attempt, assuredly, to place myself in opposition to the exalted, animated, pathetic appreciation with which the Public Attorney has surrounded all that he said, by striving for appreciation of the same kind; the defense would have no right to make use of such a manner of procedure; it must content itself with citing the text, such as it is.

And in the first place, I declare that nothing is more false than what has just been said about lascivious colour. Lascivious colour! Where can you find it? My client has depicted in *Madame Bovary* what sort of woman? My God! it is sad to say, and yet it is true, a young girl, born, as they nearly all

are, honest; at least the greater number are honest, but very fragile, when education, instead of fortifying them, softens them and turns them into bad paths. He has depicted a young girl. Is she of perverse nature? No, but of an impressionable nature, susceptible of exaltation.

The Government Attorney has said: "This young girl has constantly been presented in a lascivious light." No! she is represented as born in the country, born on a farm, where she is occupied with all her father's labor, and where no kind of lasciviousness can find a way to her mind or heart. Then she is represented, in the place of following the destiny which would be hers naturally, instead of being brought up for the farm or in some analogous place in which she ought to live, she is represented as under the short-sighted authority of a father who thinks he must have his daughter educated in a convent, this girl born on a farm, who should marry a farmer, or a man of the country. She is then taken to a convent, outside her sphere. As there is nothing that does not have weight in the Public Attorney's speech, we must leave nothing without a response. Ah! you spoke of her little sins, and in quoting from the first number, you said:

"When she went to confession, she invented little sins, in order that she might stay there longer, kneeling in the shadow ... beneath the whisperings of the priest." You have gravely deceived yourself in regard to my client's meaning. He has not committed the fault with which you reproach him; the error is wholly on your side, in the first place upon the age of the girl. As she entered the convent at thirteen, it is evident that she must have been fourteen when she went to confession. She was not then a child of ten years, as it has pleased you to say, and you were materially deceived on that point. But I am not so sure of the unlikelihood of a child of ten years liking to remain at the confessional "under the whisperings of the priest."

All that I desire is that you read the lines which precede, and that is not easy, I agree. And here appears the inconvenience of not having a pamphlet memoir at hand; with such an aid, we should not have to search through six volumes!

I have called your attention to this passage in order to recall it to *Madame Bovary* and her true character. Will you permit me to say, what seems to me very important, that M. Flaubert has fully comprehended this point and put it in bold relief. There is a kind of religion which is generally spoken of to young girls, which is the worst of all religion. There may be in this regard a difference of opinion. As for me, I declare clearly that I know nothing more beautiful, or useful, or necessary to sustain, not only women in the ways of life but men themselves, who sometimes have the most difficult trials to overcome, I know nothing so useful, so necessary, as the religious sentiment, but a serious religious sentiment, and permit me to add, severe.

I wish my children to believe in one God, not a God in the abstractness of pantheism, but in a Supreme Being with whom they have relationship, to whom they are accustomed to pray, and who at once awes and fortifies them. This thought, you see, it is your belief as well as mine, is our strength in evil days, is our strength against what we call the world; the refuge; or better still, the strength of the weak. It is this thought which gives women that stability which makes them resigned to a thousand little things in life, which makes them carry all their suffering to God, and ask of Him grace to fulfill their duty. That religion, gentlemen, is the Christian religion, and it is that which establishes a relationship between God and man. Christianity, in placing a sort of intermediary power between God and ourselves, renders God more accessible, and communication with Him easier. That the Mother of Him who has made Himself the Saviour should receive the prayers of women, cannot affect, so far as I can see, purity, religious sanctity, or religious sentiment itself. But here is where the change begins. In order to

accommodate a religion to all natures, all sorts of petty, miserable, paltry things are introduced. The pomp of the ceremonies, instead of being a true pomp which lays hold on the soul, often degenerates into a commerce in relics, medals, of little saints and Virgins. To what, gentlemen, do the minds of children, curious, ardent, and tender, lend themselves, especially the minds of young girls? To all these enfeebled, attenuated, miserable images of the religious spirit. They then take upon themselves little religious duties to put in practice, little devotions of tenderness, of love, and in the place of having in their soul the sentiment of God, the sentiment of duty, they abandon themselves to reveries, to little devices, to little devotions. And then comes the poesy, and then comes, it is very necessary to say it, a thousand thoughts of charity, of tenderness, of mystic love, a thousand forms which deceive young girls and sensualize religion. These poor children, naturally credulous and weak, take to all this poesy and reverie instead of attaching themselves to something more reasonable and severe. Whence it happens that you have very many strong devotees among women who are not religious at all. And when the wind blows them from the path where they ought to walk, in place of finding strength to combat it, they find only a kind of sensuality which bewilders them.

Ah! you have accused me of having confounded the religious element with sensualism, in the picture of modern society! Accuse rather the society in the midst of which we live, but do not accuse the man who cries with Bossuet: "Awake and be on thy guard against peril!" And say to the fathers of families: Take care! These are not good customs for your daughters; there is in all these mixtures of mysticism something which sensualises religion; say that, and you will speak the truth. It is for this that you accuse Flaubert; it is for this that I exalt his conduct. Yes, he has given very good warning of the whole family of dangers arising from exaltation among young persons, who take upon themselves petty devotions instead of attaching themselves to a strong and severe religion which would sustain

them in a day of weakness. And now you shall see whence comes the invention of the little sins "under the whisperings of the priest." Read page 30:

"She had read 'Paul and Virginia,' and she had dreamed of the little bamboo-house, the nigger Domingo, the dog Fidèle, but above all the sweet friendship of some dear little brother, who seeks red fruit for you on trees taller than steeples, or who runs barefoot over the sand, bringing you a bird's nest."

Is this lascivious, gentlemen? Let us continue.

THE GOVERNMENT ATTORNEY:

I did not say that passage was lascivious.

M. SENARD:

I ask your pardon, but it is precisely in this passage that you found a lascivious phrase, and it was only by isolating it from what preceded and what followed that you could make it seem lascivious.

"Instead of attending to mass, she looked at the pious vignettes with their azure borders in her book, and she loved the sick lamb, the sacred heart pierced with sharp arrows, or the poor Jesus sinking beneath the cross he carries. She tried, by way of mortification, to eat nothing a whole day. She puzzled her head to find some vow to fulfill."

Do not forget this; when one invents little sins to confess and seeks some vow to fulfill, as you will find in the preceding line, evidently one has got ideas that are a little false from somewhere. And now I ask you if I have to discuss your passage! I continue:

"In the evening, before prayers, there was some religious reading in the study. On week-nights it was some abstract of sacred history or the Lectures of the Abbé Frayssinous, and on Sundays passages from the 'Génie du Christianism,' as a recreation. How she listened at first to the sonorous lamentations of its romantic melancholies re-echoing through the world and eternity! If her childhood had been spent in the shop-parlor of some business quarter, she might perhaps have opened her heart to those lyrical invasions of Nature, which usually come to us only through translation in books. But she knew the country too well; she knew the lowing of cattle, the milking, the plow. Accustomed to calm aspects of life, she turned, on the contrary, to those of excitement. She loved the sea only for the sake of its storms, and the green fields only when broken up by ruins. She wished to get some personal profit out of things, and she rejected as useless all that did not contribute to the immediate desire of her heart, being of a temperament, more sentimental than artistic, looking for emotions not landscapes."

You shall see with what delicate precaution the author has introduced a saintly old maid, and how, with a purport of teaching religion, there is allowed to slip into the convent a new element, through the introduction of romance brought in by a stranger. Do not forget this when the subject of religious morals is under consideration.

"At the convent there was an old maid who came for a week each month to mend the linen. Patronized by the clergy, because she belonged to an ancient family of noblemen ruined by the Revolution, she dined in the

refectory at the table of the good sisters, and after the meal had a bit of chat with them before going back to her work. The girls often slipped out from the study to go and see her. She knew by heart the love-songs of the last century, and sang them in a low voice as she stitched away. She told stories, gave them news, went errands in the town, and on the sly lent the big girls some novel, that she always carried in the pockets of her apron, and of which the good lady herself swallowed long chapters in the intervals of her work."

This is nothing but marvellous, speaking from a literary point of view, and absolution can but be granted a man who has written these admirable passages as a warning against all perils of education of this kind, as an indication to young women of the stumbling-blocks in the life in which they will be placed. Let us continue:

"They were all love, lovers, sweet-hearts, persecuted ladies fainting in lonely pavilions, postilions killed at every stage, horses ridden to death on every page, sombre forests, heartaches, vows, sobs, tears and kisses, little skiffs by moonlight, nightingales in shady groves, 'gentlemen' brave as lions, gentle as lambs, virtuous as no one ever was, always well dressed, and weeping like fountains. For six months, then, Emma, at fifteen years of age, made her hands dirty with books from old lending libraries. With Walter Scott, later, she fell in love with historical events, dreamed of old chests, guardrooms and minstrels. She would have liked to live in some old manor-house, like those long-waisted châtelaines who, in the shade of pointed arches, spent their days leaning on the stone, chin in hand, watching a cavalier with white plume galloping on his black horse from the distant fields. At this time, she had a cult for Mary Stuart and enthusiastic veneration for illustrious or unhappy women. Joan of Arc, Héloïse, Agnès Sorel, the beautiful Ferronnière, and Clémence Isaure stood out to her like comets in the dark immensity of heaven, where also were seen, lost in

shadow, and all unconnected, St. Louis with his oak, the dying Bayard, some cruelties of Louis XI., a little of St. Bartholomew's, the plume of the Béarnais, and always the remembrance of the plates painted in honor of Louis XIV.

"In the music-class, in the ballads she sang, there was nothing but little angels with golden wings, madonnas, lagunes, gondoliers;—mild compositions that allowed her to catch a glimpse athwart the obscurity of style and the weakness of the music of the attractive phantasmagoria of sentimental realities."

Now, you have not remembered this, when that poor country girl, having returned to the farm and married a village physician, is invited to an evening party at the Castle, to which you have sought to call the attention of the judges to show that there was something lascivious in a waltz she took part in. You have not called to mind this education when this poor woman is charmed that an invitation comes to take her from her husband's common fireside and lead her to the Castle, where she sees fine gentlemen, beautiful ladies, and the old duke, who, they said, had had great fortune at Court! The Government Attorney has shown some fine emotions *à propos* of Queen Marie-Antoinette! Assuredly there is not one of us who would not share his thought; like him, we have trembled at the name of this victim of the Revolution, but it is not with Marie-Antoinette that we are concerned here, it is with the Castle Vaubyessard.

There was an old duke there who had had, they said, relations with the queen, and towards whom all eyes were turned. And when this young woman found herself thus transported into the midst of the world, thus realizing all the fantastic dreams of her youth, can you wonder at the intoxication of it? And you accuse her of being lascivious! Better accuse the waltz itself; that dance of our great modern balls where, said a late author

writing about it, the woman "leans her head upon the shoulder of her partner whose limbs embrace her." You find Madame Bovary lascivious in Flaubert's description, but there is not a man, and I will not except you, who, having taken part in a ball like that and seen that sort of waltz, has not had in mind the wish that his wife or his daughter refrain from this pleasure which has in it so much of the untamed. If, counting upon the chastity which enveloped this young woman, we allow her sometimes to give herself up to this pleasure which the world sanctions, it is necessary to count very much upon that envelope of chastity and, however much one may count upon it, it is not unheard of to express the impressions which M. Flaubert has expressed in the name of morals and chastity.

Here she is at the Castle Vaubyessard, observed by the old duke, noticed favorably by all, and you cry out: What details! What does it mean? Details are everywhere, although we cite but a single passage.

"Madame Bovary noticed that many ladies had not put their gloves in their glasses.

"But at the upper end of the table, alone among all those women, bent over his full plate, with his napkin tied round his neck like a child, an old man sat eating, letting drops of gravy drip from his mouth. His eyes were bloodshot, and he wore a little queue tied with a black ribbon. He was the Marquis's father-in-law, the old Duke de Laverdière, once on a time favorite of the Count d'Artois, in the days of the Vaudreuil hunting-parties at the Marquis de Conflans', and had been, it was said, the lover of Queen Mari-Antoinette between Monsieur de Coigny and Monsieur de Lauzun."

Defend the queen, defend her especially before the scaffold, say that because of her title she had the right of respect, but suppress your accusations when one contents himself with saying that he had been, it was

said, the lover of the queen. Can that be so serious that you reproach us with having insulted the memory of that unfortunate woman?

"He had lived a life of noisy debauch, full of duels, bets, elopements; he had squandered his fortune and frightened all his family. A servant behind his chair named aloud to him in his ear the dishes that he pointed to, stammering, and constantly Emma's eyes turned involuntarily to this old man with hanging lips, as to something extraordinary. He had lived at court and slept in the bed of queens!

"Iced champagne was poured out. Emma shivered all over as she felt it cold in her mouth. She had never seen pomegranates nor tasted pine-apples."

You see that these descriptions are charming, incontestably, and that it is not difficult to take a line here and there for the purpose of creating a kind of colour, against which my conscience protests. It is not a lascivious colour, it is only lifelike; it is the literary element and at the same time the moral element.

Here we have a young girl, whose education you are acquainted with, become a woman. The Government Attorney has asked: Did she even try to love her husband? He has not read the book; if he had read it, he would not have made the objection.

We have, gentlemen, this poor woman dreaming at first. On page 34 you will find her dreams. And there is something more here, something of which the Government Attorney did not speak, and which I must tell you, and these are her impressions when her mother died; you will see if they are lascivious soon enough! Have the goodness to turn to page 33 and follow me:

"When her mother died she cried much the first few days. She had a funeral picture made with the hair of the deceased, and, in a letter sent to the Bertaux full of sad reflections on life, she asked to be buried some day in the same grave. The good man thought she must be ill, and came to see her. Emma was secretly pleased that she had reached at a first attempt the rare ideal of pale lives, never attained by mediocre hearts. She let herself glide along with Lamartine meanderings, listened to harps on lakes, to all the songs of dying swans, to the falling of the leaves, the pure virgins ascending to heaven, and the voice of the Eternal discoursing down the valleys. She wearied of it, would not confess it, continued from habit, and at last was surprised to feel herself soothed, and with no more sadness at heart than wrinkles on her brow."

I wish to make answer to the Government Attorney's reproach that she made no effort to love her husband.

THE GOVERNMENT ATTORNEY:

I did not reproach her for that, I said that she did not succeed in loving him.

M. SENARD:

If I have been mistaken, if you made no reproach, that is the best response that could be given. I believed that I understood you to make one; let us see how I may be deceived. Moreover, here is what I read at the end of page 36:

"And yet, in accord with theories she believed right, she desired to make herself in love with him. By moonlight in the garden she recited all the passionate rhymes she knew by heart, and, sighing, sang to him many

melancholy adagios; but she found herself as calm after this as before, and Charles seemed no more amorous and no more moved.

"When she had thus for a while struck the flint on her heart without getting a spark, incapable, moreover, of understanding what she did not experience as of believing anything that did not present itself in conventional forms, she persuaded herself without difficulty that Charles's passion was nothing very exorbitant. His outbursts became regular; he embraced her at certain fixed times. It was one habit among other habits, and, like a dessert, looked forward to after the monotony of dinner."

On page 37 we find a group of similar things. Now, here is where the peril begins. You know how she has been brought up; and I beg you not to forget this for an instant.

There is not a man who, having read this, would not say that M. Flaubert is not only a great artist but a man of heart, for having in the last six pages turned all the horror and scorn upon the woman and all the interest towards the husband. He is a great artist, as has been said, because he has left the husband as he was, he has not transformed him, and to the end he is the same good man, commonplace, mediocre, full of the duties of his profession, loving his wife well, but destitute of education or elevation of thought. He is the same at the death-bed of his wife. And nevertheless, there is not an individual to whom the memory returns with more interest.

Why? Because he has kept to the end his simplicity and uprightness of heart; because to the end he has fulfilled his duty while his wife was led astray. His death is as beautiful and as touching as the death of his wife is hideous. On the dead body of the woman the author has shown the spots made by the vomiting of poison; they soil the white shroud in which she goes to her burial, and he has made her, as he desired, an object of disgust; but there is a man there who is sublime—the husband standing beside the

grave. There is a man who is grand, sublime, whose death is admirable—the husband, who, finding himself broken-hearted by the death of his wife, sees afterwards all the illusions of the heart that remained to him embraced in the thought of his wife in the tomb. Keep that, I beg you, in your remembrance. The author has gone beyond what was necessary—as Lamartine has said—in rendering the death of the woman hideous and her punishment most terrible. The author has concentrated all the interest upon the man who did not deviate from the line of duty, who preserved his mediocre character, to be sure (for the author could not change his character) but who preserved also all his generosity of heart, while upon the wife who deceived him, ruined him, gave him into the hands of usurers, put into circulation forged notes and finally arrived at suicide, was heaped all the accumulated horrors. We shall see that it is natural—the death of this woman who, if she had not come to her end by poison, would have been broken by the excess of misfortune with which she was surrounded. The author has seen this. His book would not be read if he had done otherwise, if, in order to show where an education as perilous as that of Madame Bovary can lead, he had not been prodigal with the fascinating images and the powerful tableaux for which he is reproached.

M. Flaubert constantly sets forth the superiority of the husband over the wife, and what superiority, if you please? that of simple duty fulfilled, while the wife was straying from hers. Here she is, fixed by the bent of this bad education; here she is, gone out after the scene of the ball, with the young boy, Léon, as inexperienced as herself. She coquets with him but does not dare to go further; nothing happens. Then comes Rodolphe who takes the woman to himself. After looking at her for a moment, he said: This woman is all right. She will be easy prey, because she is light-minded and inexperienced. As to the fall, will you re-read pages 42, 43 and 44. I have only a word to say about this scene and that is: there are no details, no descriptions, no image that can trouble the senses; a single word indicates

the fall: "She abandoned herself." I pray you to have the goodness to read again the details of the fall of Clarissa Harlowe, which I have not heard decried as a bad book. M. Flaubert has substituted Rodolphe for Lovelace, and Emma for Clarissa. If you will compare the two authors and the two books you will appreciate the situation.

But I will return here to the indignation of the Government Attorney. He is shocked that remorse does not immediately follow the fall, and that in the place of expressing bitterness, she said with satisfaction: "I have a lover!" But the author would not be true, if he made the enchanting draught seem bitter while it still touched the lips. He who wrote as the Attorney understands might be moral, but he would be saying what is not in nature. No, it is not at the first moment of a fault that the sentiment of fault is awakened; otherwise, it would not be committed. No, it is not at the moment when she is under a delusion that intoxicates her that a woman can be averted from this intoxication even by the immensity of the fault she has committed. She feels only the intoxication; she goes back to her home happy, sparkling, and singing in her heart: "I have a lover!" But can this last long? You have read pages 424 and 425. On both pages, and if you please, to page 428, the sentiment of disgust with her lover is not yet manifest; but she is already under the impression of fear and uneasiness. She thinks, weighs the question, and believes that she does not wish to abandon Rodolphe:

"Something stronger than herself forced her to him; so much so, that one day, seeing her come unexpectedly he frowned as one put out.

"'What is the matter with you?' she said, 'Are you ill? Tell me!'

"At last he declared with a serious air that her visits were becoming imprudent—that she was compromising herself.

"Gradually Rodolphe's fears took possession of her. At first, love had intoxicated her, and she had thought of nothing beyond. But now that he was indispensable to her life, she feared to lose anything of this, or even that it should be disturbed. When she came back from his house, she looked all about her, anxiously watching every form that passed in the horizon, and every village window from which she could be seen. She listened for steps, cries, the noise of the ploughs, and she stopped short, white, and trembling more than the aspen leaves swaying overhead."

You see unmistakably that she was not deceived; she felt clearly that there was something about it of which she had not dreamed. Let us take pages 433 and 434 and you will be still further convinced:

"When the night was rainy, they took refuge in the consulting-room, between the cart-shed and the stable. She lighted one of the kitchen candles that she had hidden behind the books. Rodolphe settled down there as if at home. The sight of the library, of the bureau, of the whole apartment, in fine, excited his merriment, and he could not refrain from making jokes about Charles which rather embarrassed Emma. She would have liked to see him more serious and even on occasions more dramatic; as, for example, when she thought she heard a noise of approaching steps in the alley.

"Some one is coming!" she said

"He blew out the light.

"Have you your pistols?"

"Why?"

"Why, to defend yourself," replied Emma.

"From your husband? Oh, poor devil!"

And Rodolphe finished his phrase with a gesture which signified: I could crush him with a fillip.

She was amazed at his bravery, although she felt that there was a sort of indelicacy and naïve grossness about it that was scandalizing.

"Rodolphe reflected a good deal on the affair of the pistols. If she had spoken seriously, it was very ridiculous, he thought, even odious; for he had no reason to hate the good Charles, not being what is called devoured by jealousy; and on this subject Emma had treated him to a lecture, which he did not think in the best taste.

"Besides, she was growing very sentimental. She had insisted on exchanging miniatures; they had cut handfuls of hair, and now she was asking for a ring—a real wedding-ring, in sign of an eternal union. She often spoke to him of the evening chimes, of the voices of nature. Then she talked to him of her mother—hers! and of his mother—his!

"Finally she wearied him."

Then, on page 453:

"He had no longer, as formerly, words so gentle that they made her cry, nor passionate caresses that made her mad; so that their great love, which engrossed her life, seemed to lessen beneath her like the water of a stream absorbed into its channel, and she could see the bed of it. She would not believe it; she redoubled in tenderness, and Rodolphe concealed his indifference less and less.

"She did not know whether she regretted yielding to him, or whether, she did not wish, on the contrary, to enjoy him the more. The humiliation of

feeling herself weak was turning to rancour, tempered by their voluptuous pleasures. It was not affection; it was like a continual seduction. He subjugated her; she almost feared him."

And you are afraid, Mr. Government Attorney, that young women might read this! I am less frightened, less timid than you. On my own personal account, I can admirably understand a father of a family saying to his daughter: Young lady, if your heart, your conscience, if religious sentiment and the voice of duty are not sufficient to make you walk in the right path, look, my child, look well at the weariness, the suffering, the grief and desolation attending the woman who seeks happiness outside her home! This language would not wound you in the mouth of a father, would it? M. Flaubert has said nothing but this; he has made a painting most true, and most powerful, of what the woman who dreams of finding happiness outside her house immediately discovers.

But let us go on and we shall come to all the adventures of the disillusion. You show me the caresses of Léon on page 60. Alas! she will soon pay the ransom of adultery, and that ransom you will find terrible, in some pages farther on in the book you condemn. She sought happiness in adultery, poor unfortunate one! And she found, besides the disgust and fatigue that the monotony of marriage can bring to the woman who does not walk in the path of duty, the disillusion and the scorn of the man to whom she has given herself. Was any of this scorn lacking in the book? Oh, no! and you cannot deny it, for the book is under your eyes. Rodolphe, who has shown himself so vile, gives to her a last proof of egoism and cowardice. She has said to him: "Take me! Carry me away! I am stifling; I can no longer breathe in my husband's house, to which I have brought shame and misfortune." He hesitates; she insists. Finally, he promises, and the next day she receives a terrible letter under which she falls crushed and annihilated. She is taken ill and is dying. The number you are consulting shows you all

the convulsions of a soul at war with itself, which perhaps could be led back to duty by an excess of suffering, but unfortunately she meets a boy with whom she had played when she was inexperienced. This is the movement of the romance, and then comes the expiation.

But the Government Attorney stops me and asks: Although it may be true that the purpose of the book is good from one end to the other, could you allow such obscene details as those that have been brought forward?

Very certainly I could not allow such details, but where have I allowed them? Where are they? I now arrive at the passages most condemned. I will say no more of the adventure in the cab. This Court has heard enough with regard to that; I come to the passages that you have pointed out as contrary to public morals and which form a certain number of pages in the December number. And, in order to pull away all the scaffolding of your accusation, there is only one thing to be done: to restore what precedes and what follows your quotations, in a word, to substitute the text complete as opposed to your cutting.

At the bottom of page 72, Léon, after making an agreement with Homais, the chemist, goes to the Hôtel de Boulogne; the chemist goes there to find him.

"Emma was no longer there. She had just gone in a fit of anger. She detested him now. This failing to keep their rendezvous seemed to her an insult.

"Then, growing calmer, she at length discovered that she had no doubt calumniated him. But the disparaging of those we love always alienates us from them to some extent. We must not touch our idols; the guilt sticks to our fingers."

Great heavens! And it is for such lines as I have been reading to you that we are dragged before you. Listen now:

"They gradually came to talking more frequently of matters outside their love, and in the letters that Emma wrote him she spoke of flowers, verses, the moon and the stars, naïve resources of a waning passion striving to keep itself alive by all external aids. She was constantly promising herself a profound felicity on her next journey. Then she confessed to herself that she felt nothing extraordinary. This disappointment quickly gave way to a new hope, and Emma returned to him more inflamed, more eager than ever. She undressed brutally, tearing off the thin laces of her corset that nestled around her hips like a gliding snake. She went on tip-toe, barefooted, to see once more that the door was closed; then, pale, serious, and without speaking, with one movement she threw herself upon his breast with a long shudder." You have stopped here, Mr. Attorney; permit me to continue:

"Yet there was upon that brow covered with cold drops, on those quivering lips, in those wild eyes, in the strain of those arms, something vague and dreary that seemed to Léon to glide between them subtly as if to separate them."

You call this lascivious colour, you say that this gives a taste for adultery, you say that these pages excite and arouse the senses,—that they are lascivious pages! But death is in these pages! You did not think of that, Mr. Attorney, and were simply frightened to find such words as *corset*, *clothing which falls off*, etc.; and you attach yourself to these three or four words, such as corset and falling clothing. Do you wish me to show you that corsets can appear in a classic book, a very classic book? I shall give myself the pleasure of so doing, presently.

"She undressed herself ..." [ah! Mr. Government Attorney, how badly you have understood this passage!] "she undressed hastily [poor thing],

tearing off the thin laces of her corset that nestled around her hips like a gliding snake; then pale, serious, and without speaking, with one movement she threw herself upon his breast with a long shudder.... There was upon that brow covered with cold drops ... in the strain of those arms something vague and dreary...."

We must ask here where the lascivious colour is? and where is the severe colour? and ask if the senses of the young girl into whose hands this book might fall, could be aroused, excited—as she might by reading a classic of classics, which I shall cite presently, and which has been reprinted a thousand times without any prosecution, public or royal, following it. Is there anything analogous in what I am going to read you? Is there not, on the contrary, a horror of vice that this "something dreary glides in between them to separate them?" Let us continue, I pray:

"He did not dare to question her; but, seeing her so skilled, she must have passed, he thought, through every experience of suffering and of pleasure. What had once charmed now frightened him a little. Besides, he rebelled against his absorption, daily more marked by her personality. He begrudged Emma this constant victory. He even strove not to love her; then, when he heard the creaking of her boots, he turned coward, like drunkards at the sight of strong drinks."

What is lascivious there?

And then, take the last paragraph:

"One day, when they had parted early and she was returning alone along the boulevard, she saw the walls of her convent; then she sat down on a form in the shade of the elm-trees. How calm that time had been! How she longed for the ineffable sentiments of love that she had tried to figure to herself out of books! The first month of her marriage, her rides in the wood,

the viscount that waltzed, and Lagardy singing, all repassed before her eyes. And Léon suddenly appeared to her as far off as the others.

"'Yet I love him,' she said to herself."

Do not forget this, Mr. Attorney, when you judge the thought of the author, when you wish to find absolutely lascivious colour where I can only find an excellent book.

"She was not happy—she never had been. Whence came this insufficiency of life—this instantaneous turning to decay of everything on which she leant?"

Is that lascivious?

"But if there were somewhere a being strong and beautiful, a valiant nature, full at once of exaltation and refinement, a poet's heart in angel's form, a lyre with sounding chords ringing out elegiac epithalamia to heaven, why, perchance, should she not find him? Ah! how impossible! Besides, nothing was worth the trouble of seeking it; everything was a lie. Every smile hid a yawn of boredom, every joy a curse, all pleasure satiety, and the sweetest kisses left upon your lips only the unattainable desire for a greater delight.

"A metallic clang droned through the air, and four strokes were heard from the convent-clock. Four o'clock! And it seemed to her that she had been there on that form an eternity. But an infinity of passions may be contained in a minute, like a crowd in a small space."

It is not necessary to look at the end of the book to find what is in it from one end to the other. I have read the incriminated passage without adding a word, to defend a work which defends itself through itself. Let us continue

leading from this same incriminated passage, looking at it from a moral point of view:

"Madame was in her room, which no one entered. She stayed there all day long, torpid, half dressed, and from time to time burning Turkish pastilles which she had bought at Rouen in an Algerian's shop. In order not to have at night this sleeping man stretched at her side, by dint of manoeuvring, she at least succeeded in banishing him to the second floor, while she read till morning extravagant books, full of pictures of orgies and thrilling situations. Often, seized with fear, she cried out, and Charles hurried to her.

"Oh, go away!" she would say.

"Or at other times, consumed more ardently than ever by that inner flame to which adultery added fuel, panting, tremulous, all desire, she threw open her window, breathed in the cold air, shook loose in the wind her masses of hair, too heavy, and gazing upon the stars, longed for some princely love. She thought of him, of Léon. She would then have given anything for a single one of those meetings that surfeited her.

"Those were her gala days. She wished them to be sumptuous, and when he alone could not pay the expenses, she made up the deficit liberally, which happened almost every time. He tried to make her understand that they would be quite as comfortable somewhere else, in a smaller hotel, but she always found some objection."

You see all this is very simple when one reads the whole; but in cuttings like those of the Government Attorney, the smallest word becomes a mountain.

THE GOVERNMENT ATTORNEY:

I did not quote any of those phrases last mentioned; but since you wish to quote what I have not incriminated, it would be well not to pass over the foot of the page adjoining page 50.

M. SENARD:

I pass over nothing, but I insist upon citing the incriminated passages in the quotations. We are quoting from pages 77 and 78.

THE GOVERNMENT ATTORNEY:

I refer to the quotations made to the audience, and thought you imputed me with having cited the lines you are about to read.

M. SENARD:

Mr. Attorney, I have quoted all the passages by whose aid you have attempted to constitute a misdemeanor—which accusation is now shattered. You developed before the audience what seemed to you convincing, and have had a fair opportunity. Happily we had the book and the defense knew the book; if he had not known it, his position, allow me to tell you, would have been very awkward. I am called upon to explain such and such passages to myself and to add others for the benefit of the audience. If I had not possessed the book, as I do, the defense had been difficult. Now, I can show you, through a faithful analysis of the romance, that far from being

considered a lascivious work, it should be considered, on the contrary, eminently moral. After doing this, I took the passages that have been the motive for police correction, and after I followed the cuttings with what preceded and what succeeded, the accusation became so weak that you are in revolt the moment I have finished reading them! These same passages that you stamped as recriminating, I have used an equal right to quote myself, for the purpose of showing you the folly of the accusation.

I continue my quotation where I stopped at the bottom of page 78.

"He was bored now when Emma suddenly began to sob on his breast, and his heart, like the people who can only stand a certain amount of music, dozed to the sound of a love whose delicacies he no longer noted.

"They knew one another too well for any of those surprises of possession, that increase its joys a hundredfold. She was as sick of him as he was weary of her. Emma found again in adultery all the platitudes of marriage."

Platitudes of marriage! He who did the cutting here has said: Now, here is a man who says that in marriage there are only platitudes! It is an attack on marriage, it is an outrage to morals! You will agree, Mr. Attorney, that with cuttings artistically made, one can go far in the way of incriminating. What is it that the author called the platitudes of marriage? That monotony which Emma had dreaded, which she had wished to escape from but had found continually in adultery, which was precisely the disillusion. You now see clearly that when, in the place of cutting off the members of certain phrases and cutting out some words, we read what precedes and what follows, nothing remains for incrimination; and you can well comprehend that my client, who knew what he wished to say, must be a little in revolt at seeing it thus travestied. Let us continue:

"She was as sick of him as he was weary of her. Emma found again in adultery all the platitudes of marriage.

"But how to get rid of him? Then, though she might feel humiliated at the baseness of such enjoyment, she clung to it from habit or from corruption, and each day she hungered after them the more, exhausting all felicity in wishing for too much of it. She accused Léon of her baffled hopes, as if he had betrayed her; and she even longed for some catastrophe that would bring about their separation, since she had not the courage to make up her mind to it herself.

"She none the less went on writing him love letters, in virtue of the notion that a woman must write to her lover.

"But whilst she wrote it was another man she saw, a phantom fashioned out of her most ardent memories. [This is certainly not incriminating.]

"Then she fell back exhausted, for these transports of vague love wearied her more than great debauchery.

"She now felt constant ache all over her. Often she even received a summons, stamped paper that she barely looked at. She would have liked not to be alive, or to be always asleep."

I call that an excitation of virtue through a horror of vice, as the author himself calls it, and which the reader, no longer perplexed, cannot fail to see, unless influenced by ill-will.

And now, something more to make you perceive what kind of man you are about to judge. And in order to show you, not what kind of justification I may expect, but whether M. Flaubert has made use of lascivious colour, and whence he got his inspiration, let me put upon your desk this book used

by him, in whose passages he found himself inspired to paint this concupiscence, the entanglements of this woman who sought happiness in illicit pleasures, but could not find it there, who sought again and again and never found it. Whence has Flaubert derived his inspiration, gentlemen? It was from this book; listen:

ILLUSION OF THE SENSES.

"Whoever, then, attaches himself to the senses, must necessarily wander from object to object and deceive himself, so to speak, by a change of place, as concupiscence,—that is to say, love of pleasure,—is always changing, because its ardour languishes and dies in continuity, and it is only change that makes it revive. Again, what is that other characteristic of a life of the senses, that alternate movement of appetite and disgust, of disgust and appetite, the soul floating ever uncertain between ardour which abates and ardour which is renewed? *Inconstantia concupiscentia*. That is what a life of the senses is. However, in this perpetual movement, one must not allow himself to be deceived by the image of wandering liberty."

This is what a life of the senses is. Who has said that? Who has written these words which you are about to hear upon these excitements and excessive ardor? What is the book which M. Flaubert perused day and night, and which has inspired the passages that the Government Attorney condemns? It is by Bossuet! What I shall read to you is a fragment of Bossuet's discourse upon *Illicit Pleasures*. I shall bring you to see that all these incriminated passages are—not plagiarized; the man who appropriates an idea is not a plagiarist—but imitations of Bossuet. Do you wish for another example? Here it is:

UPON SIN.

"And do not ask me, Christians, in what way this great change of pleasure into punishment will come about. The thing is proved by the Scriptures. It is Truth who has said it, it is the All-Powerful who has made it so. And sometimes, if you will look at the nature of the passions to which you abandon your heart, you will easily comprehend that they may become an intolerable punishment. They all have in themselves cruel pain, disgust and bitterness. They all have an infinity which is angered by not being able to be satisfied. There are transports of rage mingled in all of them which degenerates into a kind of fury not less painful than unreasonable. Love, if I may be permitted so to name it in this guise, has its uncertainties, its violent agitations, its irresolute resolutions and an abyss of jealousies."

And further:

"Ah! What, then, is easier than making of our passions an insupportable pain or sin, when, if we cut out, as is very just, the little sweetness through which they lead us, there is left of them only the cruel disquiet and bitterness with which they abound? Our sins are against us, our sins are upon us, our sins are in the midst of us; like an arrow piercing our body, an insupportable weight upon our head, a poison devouring our entrails."

Is not all that you have just listened to designed to show you the bitterness of passion? I leave you this book, lined and thumb-marked by the studious man who has found his thought there. And that man, who has been inspired from a source of this kind, who has written of adultery in the terms you have listened to, is prosecuted for outrage of public and religious morals!

A few lines still upon the *woman sinner*, and you will see how M. Flaubert, having decided to paint this ardour, understood taking inspiration from this model:

"But, punished for our error, without being deceived by it, we seek in change the remedy for our scorn; we wander from object to object, and if, finally there is some one who holds us, it is not because we are content with our choice, but because we are bound by our inconstancy."

* * * * *

"All appeared to her empty, false, disgusting in these creatures: far from finding there those first charms which her heart had had so much difficulty in defending, she saw in them now only frivolity, danger and vanity."

* * * * *

"I will not speak of an entanglement of passion; what fears there are that the mystery of it cannot dispel! what measures to keep on the side of well-being and pride! what eyes to shun! what watchers to deceive! what returns to fear from those whom one chooses for their aids and confidants in their passion! what indignities to suffer from him, perhaps, for whom one has sacrificed honour and liberty, and of whom one dare not complain! To all this, add those cruel moments when passion, less lively, leaves us to choose between falling back upon ourselves and feeling all the humility of our position, and those moments where the heart, born for more solid pleasures, leaves us with our own idols and finds its punishment in its own disgust and inconstancy. Profane world! if there is in you that felicity that is so much vaunted, favor your adorers with it nor punish them for the faith they have added so lightly to your promises."

Let me say to you here: when a man in the silence of the night, meditates upon the causes of enticement for woman, when he finds them in her education and, putting aside personal observation, for the sake of expressing his thoughts, matures them at the sources I have indicated, not allowing himself to use his pen except from inspiration of Bossuet and

Massillon, permit me to ask you if there is a word to express my surprise, my grief, on seeing this man dragged into Court—on account of some passages in his book, and precisely for the truest and most elevated ideas that he was able to bring together! And I pray you not to forget this in relation to the charge of outrage against religious morals! And then, if you will permit me, I will put in opposition to all this, under your very eyes, what I myself call attacking the moral, that is to say, satisfaction of the senses without bitterness, without those large drops of cold sweat which fall from the brow of those who give themselves over to it; and I will not quote to you from licentious books in which the authors have sought to arouse the senses; I will quote from only one book—which is given as a prize in colleges, but whose author's name I ask leave to withhold until after I have read you a passage from it. Here is the passage: I will ask you to pass the volume. It is a copy that was given to a college student as a prize. I prefer you to take this copy rather than M. Flaubert's:

"The next day I was received into her apartment. There I felt all that voluptuousness carries with it. The room was filled with the most agreeable perfumes. She lay upon a bed which was enclosed in garlands of flowers. She appeared to be lying there languishingly. She extended her hand to me and made me sit beside her. In all, even in the veil which covered her face, there was a charm. I could see the form of her beautiful body. A simple cloth which moved as she moved allowed me at one time to see, and at another to lose sight of, her ravishing beauty."

A simple cloth when it was extended over a dead body appeared to you a lascivious image; here it is extended over a living woman:

"She noticed that my eyes were occupied, and when she saw them inflamed, the cloth seemed to open itself away from her; I saw all the treasures of a divine beauty. At this moment she took my hand; my eyes

were wandering. There is only my dear Ardasire, I cry out, who can be as beautiful; but I swear to the gods that my fidelity.... She threw herself on my neck and drew me into her arms. Suddenly the room became darkened; her veil opened and she gave me a kiss. I was beside myself; a flame started suddenly through my veins and aroused all my senses. The idea of Ardasire was far from me. She remained to me only as a memory ... there appeared to me but one thought.... I was going.... I was going to prefer this one even to her. Already my hands had wandered to her breasts; they ran rapidly everywhere; love showed itself only in its fury; it hurried on to victory; a moment more and Ardasire could not defend herself."

Who, now, has written that? It is not the author of *The New Héloïse*, it is the President, Montesquieu! Here is no bitterness, no disgust, but all is sacrificed to literary beauty, and they give it as a prize to pupils in rhetoric, without doubt to serve as a model in the amplifications and descriptions that they are required to write. Montesquieu described in his Persian Letters a scene which could not even be read. It concerns a woman placed between two men who dispute over her. This woman, placed between two men, has dreams—which appear to the author very agreeable.

Shall we sum up, Mr. Attorney? Or is it necessary for me to quote you Jean-Jacques Rousseau in his *Confessions*, and some others? No, I will only say to the judges that if, on account of his description of the carriage in *The Double Misunderstanding*, M. Mérimée had been prosecuted, he would have been acquitted immediately. One sees in his book only a work of art of great literary beauty. One would no more condemn it than he would condemn paintings or statuary, which is not content with representing all the beauties of the body, but wishes to add ardour and passion. I will follow it no farther; I ask you to recognise the fact that M. Flaubert has not weighted his images and has done only one thing: he has touched with a firm hand the scene of degradation. At each line of his book he has brought

out the disillusion, and instead of ending it with something charming, he has undertaken to show us that this woman, after meeting scorn, abandonment, and ruin of her house, comes to a frightful death. In a word, I can only repeat what I said at the beginning of this plea, that M. Flaubert is the author of a good book, a book which aims at the excitation of virtue by arousing a horror of vice.

I will now look into his outrage against religion. An outrage against religion committed by M. Flaubert! And in what respect, if you please? The Government Attorney has thought he found in him a sceptic. I can assure the Government Attorney that he is deceived. I am not here to make a profession of faith, I am here only to defend a book, and for that reason I shall limit myself to a simple word. Now as to the book, I defy the Government Attorney to find in it anything that resembles an outrage against religion. You have seen how religion was introduced in Emma's education, and how this religion, false in a thousand ways, could not hold Emma from the bent that carried her astray. Would you know in what kind of language M. Flaubert speaks of religion? Listen to some lines that I take from the first number, pages 231, 232 and 233:

"One evening when the window was open, and she, sitting by it, had been watching Lestiboudois, the beadle, trimming the box, she suddenly heard the Angelus ringing.

"It was the beginning of April, when the primroses are in bloom, and a warm wind blows over the flower-beds newly turned, and the gardens, like women, seem to be getting ready for the summer fêtes. Through the bars of the harbour and away beyond, the river could be seen in the fields, meandering through the grass in wandering curves. The evening vapors rose between the leafless poplars, touching their outlines with a violet tint, paler and more transparent than a subtle gauze caught athwart their branches. In

the distance cattle moved about; neither their steps nor their lowing could be heard; and the bell, still ringing through the air, kept up its peaceful lamentation.

"With this repeated tinkling the thoughts of the young woman lost themselves in old memories of her youth and school-days. She remembered the great candlesticks that rose above the vases full of flowers on the altar, and the tabernacle with its small columns. She would have liked to be once more lost in the long line of white veils, marked off here and there by the stiff black hoods of the good sisters bending over their prie-Dieu."

This is the language in which his religious sentiment is expressed. And yet we have understood from the Government Attorney that scepticism reigned in M. Flaubert's book from one end to the other. Where, I pray you, have you found this scepticism?

THE GOVERNMENT ATTORNEY:

I have not said that there was any of it in its inner meaning.

M. SENARD:

If not in its inner meaning, where then, is it? In your cuttings, evidently. But here is the work entire, as the Court will judge it, and it can see that the religious sentiment is so forcefully imprinted there that the accusation of scepticism is pure slander. And now, the Government Attorney will permit me to say to him that it was not for the purpose of accusing the author of scepticism that all this trouble has been made. Let us proceed:

"At mass on Sundays, when she looked up, she saw the gentle face of the Virgin amid the blue smoke of the rising incense. Then she was moved; she felt herself weak and quite deserted, like the down of a bird whirled by the tempest, and it was unconsciously that she went towards the church, inclined to no matter what devotions, so that her soul was absorbed and all existence lost in it."

This, gentlemen, is the first appeal of religion to hold Emma from the trend of her passions. She has fallen, poor woman, and then been repelled by the foot of the man to whom she abandoned herself. She is nearly dead, but raises herself and becomes reanimated; and you shall see now what is written in the 15th of November number, 1856, page 548:

"One day, when at the height of her illness, she had thought herself dying, and had asked for the communion; and while they were making the preparations in her room for the sacrament, while they were turning the night-table, covered with sirups, into an altar, and while Félicité was strewing dahlia flowers on the floor, Emma felt some power passing over her that freed her from her pains, from all perception, from all feeling. Her body, relieved, no longer thought; another life was beginning; it seemed to her that her being, mounting toward God, would be annihilated in that love like a burning insense that melts into vapour. [You see that this is the language in which M. Flaubert speaks of religious things]. The bed-clothes were sprinkled with holy water, the priest drew from the holy pyx the white wafer; and it was fainting with a celestial joy that she put out her lips to accept the body of the Saviour presented to her."

I ask the pardon of the Government Attorney, I ask the Court's pardon for interrupting this passage; but I must needs say that it is the author who is speaking, and bring to your notice in what terms he expresses the mystery of the communion. Before going on with the reading, I must needs impress

the literary value of this picture upon the Court and insist that they seize upon these expressions which are the author's own:

"The curtains of the alcove floated gently round her like clouds, and the rays of the two tapers burning on the night-table seemed to shine like dazzling halos. Then she let her head fall back, fancying she heard in space the music of seraphic harps, and perceived in an azure sky, on a golden throne in the midst of saints holding green palms, God the Father, resplendent with majesty, who with a sign sent to earth angels with wings of fire to carry her away in their arms."

* * * * *

"This splendid vision dwelt in her memory as the most beautiful thing that it was possible to dream, so that now she strove to recall her sensation, that still lasted, however, but in a less exclusive fashion and with a deeper sweetness. Her soul, tortured by pride, at length found rest in Christian humility, and, tasting the joy of weakness, she saw within herself the destruction of her will, that must have left a wide entrance for the inroads of heavenly grace. There existed, then, in the place of happiness, still greater joys,—another love beyond all loves, without pause and without end, one that would grow eternally! She saw amid the illusions of her hope a state of purity floating above the earth mingling with heaven, to which she aspired. She wanted to become a saint. She bought chaplets and wore amulets; she wished to have in her room, by the side of her bed, a reliquary set in emeralds that she might kiss it every evening."

Here are some of his religious sentiments! And if you wish to pause a moment to consider the author's thought, I will ask you to turn the page and read the first three lines of the second paragraph:

"She grew provoked at the doctrines of religion; the arrogance of the polemic writings displeased her by their inveteracy in attacking people she did not know; and the secular stories, relieved with religion, seemed to her written in such ignorance of the world, that they insensibly estranged her from the truths for whose proof she was looking."

This is the language of M. Flaubert. Now, if you please, we come to another scene, that of the extreme unction. Oh! Mr. Government Attorney, how you have deceived yourself when, stopping at the first words, you accuse my client of mingling the sacred with the profane; when he has been content to translate the beautiful formulas of extreme unction, at the moment when the priest touches the organs of sense, at the moment where, according to the ritual, he says: *Per istam unctionem, et suam piissimam misericordiam, indulgeat tibi Dominus quid-quid deliquisti!*

You said it was not necessary to touch upon holy things. With what right do you misinterpret these holy words:

"May God, in His holy pity, pardon you for all the sins that you have committed through sight, taste, hearing, etc.?"

Wait, I am going to read the condemned passage, and that will be all my vengeance. I dare say vengeance, because the author has need of being avenged! Yes, it is necessary for M. Flaubert to go out of here not only acquitted, but avenged! You will see from what kind of reading he has been nourished. The condemned passage is on page 271 of the December 15th number, and runs thus:

"Pale as a statue, and with eyes red as fire, Charles, not weeping, stood opposite her at the foot of the bed, while the priest bending one knee, was muttering words in a low voice."

This whole picture is magnificent, and the wording of it irresistible. But be quiet, and I will not prolong it beyond measure. Now here is the condemnation!

"She turned her face slowly, and seemed filled with joy on seeing suddenly the violet stole, no doubt finding again, in the midst of a temporary lull in her pain, the lost voluptuousness of her first mystical transports, with the visions of eternal beatitude that were beginning.

"The priest rose to take the crucifix: then she stretched forward her neck as one who is athirst, and gluing her lips to the body of the Man-God, she pressed upon it with all her expiring strength the fullest kiss of love that she had ever given."

The extreme unction has not yet begun; but we are reproached for this kiss. I am not going to search in the history of Saint Theresa whom you perhaps know, but the memory of whom is too far away, I am not going to seek in Fénelon for the mysticism of Madame Guyon, nor in more modern mysticisms, in which I find much reason. I only wish to ask of those schools which you designate as belonging to sensual Christianity, the explanation of this kiss; it is Bossuet, Bossuet himself, of whom I would ask it:

"Obey, and strive finally to enter into the disposition of Jesus in communing, which is the disposition of harmony, joy and love; the whole gospel proclaims it. Jesus wishes that we may be with Him; He wishes to rejoice and He wishes us to rejoice with Him: He has given Himself...." etc.

I continue the reading of the condemned passage:

"Then he recited the *Misereatur* and the *Indulgentiam*, dipped his right thumb in the oil and began to give extreme unction. First upon the eyes, that had so coveted all worldly pomp; then upon the nostrils, greedy for warm breezes and amorous perfumes; then upon the mouth, that had uttered lies, that curled with pride and cried out in lewdness; then upon the hands, that had delighted in sensual touches, and finally upon the soles of feet, so swift of yore when she was running to satisfy her desires, and that now would walk no more.

"The curé wiped his fingers, threw the bit of cotton dipped in oil into the fire, and came and sat down by the dying woman, to tell her that she must now blend her sufferings with those of Jesus Christ, and abandon herself to the Divine mercy.

"Finishing his exhortations, he tried to place in her hand a blessed candle, symbol of the celestial glory with which she was soon to be surrounded. Emma, too weak, could not close her fingers, and the taper, but for Monsieur Bournisien, would have fallen to the ground.

"However, she was not quite so pale, and her face had an expression of serenity as if the sacrament had cured her.

"The priest did not fail to point this out; he even explained to Bovary that the Lord sometimes prolonged the life of persons when he thought it meet for their salvation; and Charles remembered the day when, so near death, she had received the communion. Perhaps there was no need to despair, he thought."

Now, when a woman dies and the priest goes to give her extreme unction, if one portrays that mystic scene and translates for us the sacramental words with scrupulous fidelity, they say that he has touched upon holy things; that he has put a rash hand on sacred matters; because to the *deliquisti per*

oculos, per os, per aurem, per manus et per pedes he has added the sin which each of the organs has committed. But we are not the first to walk in this path. M. Sainte-Beuve, in a book which you know, has also a scene of extreme unction, and here is how he expresses it:

"Oh! yes, upon the eyes first, as the most noble and most alive of the senses; upon those eyes for what they have seen and regarded too tenderly, or that which was too perfidious in others' eyes, or too mortal; for what they have read and re-read of endearment that was too dear; for what they have poured out in vain tears over fragile goods and faithless creatures; for the sleep which they have too often forgotten, thinking only of the evening!

"Upon the ears also for what they have heard and allowed themselves to hear that was too sweet, too flattering and intoxicating; for that sound which the ear steals from deceptive words; for what it drinks in from stolen honey!

"Then the smell, for the too subtle and voluptuous perfumes of evening and the springtime in the depth of the woods, for flowers received in the morning and all through the day, and breathed in with so much pleasure!

"Upon the lips, for what they have pronounced that was too confused or too open; for what they did not reply at certain moments or what they have not revealed to certain persons; for what they have sung in solitude that was too melodious and too full of tears; for their inarticulate murmur and for their silence!

"Upon the neck, in the place of on the breast, for the ardor of desire according to the consecrated expression (*propter ardorem libidinis*); yes, for the grief in affection and the rivalry, for too much anguish in human tenderness, for the tears which are suffocated in a voiceless throat, for all that goes to wound the heart and break it!

"Upon the hands also, for having seized a hand which was not bound to holiness; for having received too burning tears; perhaps for having begun to write and for finishing a response not lawful!

"Upon the feet, for not having fled, for not having been satisfied with long, solitary walks, for not having been weary soon enough in the midst of temptations which were ever beginning anew!"

You did not prosecute that. Here are two men who, each in his own sphere, has taken the same thing and who have, according to his own idea, added the sin, the fault. Can it be that you make an indictment for simply translating the formula of the ritual: *Quidquid deliquisti per oculos, per aurem*, etc.?

M. Flaubert has done just what M. Sainte-Beuve did, without plagiarizing. He has made use of a right which belongs to any writer, to add to what another has said and complete the subject. The last scene of the romance of *Madame Bovary* has been made a complete study of this kind from religious documents. M. Flaubert has taken the scene of the extreme unction from a book which a venerable ecclesiastic, one of his friends, lent to him; this same friend has read the scene and been moved to tears, not imagining that the majesty of religion was in any way offended. The book is entitled: *An historic, dogmatic, moral, liturgical and canonical explanation of the catechism, with an answer to the objections drawn from science against religion, by the Abbé Ambroise Guillois, curate of Nôtre-Dame-du-Pré, 6th edition, etc.*, a work approved by His Eminence the Cardinal Gousset, N.N.S.S. the Bishops and Archbishops of Mans, of Tours, of Bordeaux, of Cologne, etc., vol. III., printed at Mans, by Charles Monnoyer, 1851. Now, you shall see in this book, as you saw just now in Bossuet's, the principles, and, in a certain way, the text of the passages which the

Government has condemned. It is no longer M. Sainte-Beuve, an artist, a literary rhapsodist, whom I am quoting; we now listen to the Church itself:

"Extreme unction can give back health to the body if it be useful to the glory of God" ... and the priest says that this often happens. Now, here is the extreme unction:

"The priest addresses the sick with a short exhortation, if he is in a state to hear it, in order to dispose him worthily to receive the sacrament which is to be administered to him.

"The priest then passes the unction upon the sick person with the stiletto or the extremity of his right thumb, which he dips each time in the oil. This unction should be made especially upon the five parts of the body which nature has given to man as the organs of sensation, namely: the eyes, the ears, the nostrils, the mouth and the hands."

"As the priest makes the unctions [we have followed from point to point the ritual which we have copied], he pronounces the words which correspond to them.

"To the eyes, upon the closed eyeball: Through this holy unction and His divine pity, may God pardon all the sins that you have committed through sight. The sick person should at this moment have a new hatred of all the sins committed through sight: such as indiscreet looks, criminal curiosity, and reading what has caused to be born in him a host of thoughts contrary to faith or morals."

What has M. Flaubert done? He has put in the mouth of the priest, by uniting the two parts, what should be in his thoughts and also those of the sick person. He has copied purely and simply.

"To the ears: Through this holy unction and through His divine pity, may God pardon all the sins that you have committed through the sense of hearing. The sick person should, at this moment, detest anew all the errors of which he is guilty from listening with pleasure to slander, calumny, proposed dishonesty and obscene songs.

"To the nostrils: Through this holy unction and His divine pity, may the Lord pardon all the sins that you have committed through the sense of smell. At this moment the sick person should detest anew all the sins that he has committed through the sense of smell, his refined and voluptuous search for perfumes, all his sensibilities, all that he has breathed in of iniquitous odors.

"To the mouth, upon the lips: Through this holy unction and through His great pity, may the Lord pardon you all the sins that you have committed by the sense of taste and words. The sick man at this moment should detest anew all the sins that he has committed in oaths and blaspheming ... in eating and drinking to excess....

"Upon the hands: Through this holy unction and through His great pity, may the Lord pardon all the sins that you have committed through the sense of touch. The sick man ought to detest at this moment all the larcenies, the injustice of which he has been guilty, all the liberties, more or less criminal, which he has allowed himself. The priest receives the unction on his hands from without because he has already received it from within at the time of his ordination, and the sick person receives it within.

"Upon the feet: Through this holy unction and His great pity, may God pardon all the sins that you have committed in your walks. The sick man ought, at this moment, to detest anew all the steps that he has taken in the path of iniquity, such as scandalous walks, and criminal interviews.... The unction of the feet is made upon the top or on the sole, according to the

convenience of the sick person, and according to the custom of the diocese where it takes place. The most common practice seems to be to make it on the soles of the feet.

"And finally upon the breast. [M. Sainte-Beuve has copied this; we have not, because it was concerned with the breast of a woman.] *Propter ardorem libidinis*, etc.

"*On the breast*: Through this holy unction and His great pity, may the Lord pardon all the sins which have been committed from the ardour of the passions. The sick man ought, at this moment, to detest anew all the bad thoughts to which he has abandoned himself, all sentiments of hatred, or vengeance that he has nourished in his heart."

And following the ritual, we could have spoken of something more than the breast, but God knows what holy anger would have been aroused in the Public Attorney's office, if we had spoken of the loins!

"*To the loins*: Through this holy unction and His great pity, may the Lord pardon all the sins that you have committed by irregular impulses of the flesh."

If we had said that, what a thunderbolt you would have had with which to attempt to crush us, Mr. Attorney! and nevertheless, the ritual adds: "The sick man ought, at this moment, to detest anew all illicit pleasures, carnal delights, etc...."

This is the ritual; and you have seen the condemned article. It has nothing of raillery in it, but is serious and earnest. And I repeat to you that he who lent my client this book, and saw my client make the use of it that he has, has taken him by the hand with tears in his eyes. You see, then, Mr. Government Attorney, how rash—not to use an expression which in order

to be exact is not too severe—is your accusation of our touching upon holy things. You see now that we have not mingled the profane with the sacred when, at each sense we indicated the sin committed by that sense, since it is the language of the Church itself.

I insist now upon mentioning the other details of the charge of outrage against religion. The Public Minister said to me: "It is no longer religion but the morals of all time that you have outraged; you have insulted death!" How have we insulted death? Because at the moment when this woman dies, there passes in the street a man whom she had met more than once, to whom she had given alms from her carriage as she was going to her adulterous meetings; a blind man whom she was accustomed to see, who sang his song walking along slowly by the side of her carriage, to whom she threw a piece of money, but whose countenance made her shiver? This man was passing in the street; and at the moment when Divine pity pardoned, or promised pardon, to the unfortunate woman who was expiating the faults of her life by a frightful death, human raillery appeared to her in the form of the song under her window. Great Heavens! you find an outrage in this! But M. Flaubert has only done what Shakespeare and Goethe have done, who, at the supreme moment of death, have not failed to make heard some chant, or perhaps plaint, or it might be raillery, which recalls to him who is passing to eternity some pleasure which he will never more enjoy, or some fault to be atoned. Let us read:

"In fact, she looked around her slowly, as one awakening from a dream; then in a distinct voice she asked for her looking-glass, and remained some time bending over it, until the big tears fell from her eyes. Then she turned away her head with a sigh and fell back upon the pillows."

I could not read it, I am like Lamartine: "The punishment seems to me to go beyond truth...." I should not consider that I was doing a bad deed, Mr.

Attorney, in reading these pages to my married daughters, honest girls who have had a good example and good teaching, and who would never, never go away from the straight path for indiscretion, or away from things that could and ought to be understood.... It is impossible for me to continue this reading and I shall hold myself rigorously to the condemned passages:

"As the death-rattle became stronger [Charles was by her side, the man whom you did not see but who is admirable] the priest prayed faster; his prayers mingled with Bovary's stifled sobs, and sometimes all seemed lost in the muffled murmur of the Latin syllables that tolled like a passing bell.

"Suddenly on the pavement was heard a loud noise of clogs, and the clattering of a stick; and a voice, a raucous voice, sang:

"Maids in the warmth of a summer day,
Dream of love and of love away;
The wind is strong this summer day,
Her petticoat is blown away."

Emma raised herself like a galvanized corpse, her hair undone, her eyes fixed, staring.

"Where the sickle blades have been,
Nannette, gathering ears of corn,
Passes bending down, my queen,
To the earth where they were born."

"The blind man!" she cries.

"And Emma began to laugh, an atrocious, frantic, despairing laugh, thinking she saw the hideous face of the poor wretch that stood out against the eternal night like a menace.

"She fell back upon the mattress in a convulsion. They all drew near. She was dead."

You see, gentlemen, in this supreme moment, a recalling of her sin, and with it remorse and all that goes with it of poignancy and fear. It is not alone the whim of an artist wishing only to make a contrast without a purpose or a moral; she hears the blind man in the street singing the frightful song he had sung when she was returning all in a perspiration and hideous from an adulterous meeting; it is the same blind man whom she saw at each of those meetings; the blind man who pursued her with his song and his importunity; it is he who comes now to personify human rage at the instant when Divine pity comes to her and follows her to the supreme moment of death! And this is called an outrage against public morals! But I say, on the contrary, that it is an homage to public morals, that there is nothing more moral than this; I say that in this book the vice of education is awake, that it is taken from the true, from the living flesh of our society, and that at each stroke the author places before us this question: "Have you done what you ought for the education of your daughters? Is the religion you have given them such as will sustain them in the tempests of life, or is it only a mass of carnal superstitions which leaves them without support when the storm rages? Have you taught them that life is not the realization of chimerical dreams, that it is something prosaic to which it is necessary to accommodate oneself? Have you taught them that? Have you done what you ought for their happiness? Have you said to them: Poor children, outside the route I have pointed out to you, in the pleasures you may pursue, only disgust awaits you, trouble, disorder, dilapidation, convulsions, and execution...." And you will see that if anything were lacking in the picture, the sheriff's officer is there; there, too, is the Jew who has seized and sold her furniture to satisfy the caprices of this woman; and the husband is still ignorant of this. Nothing remains for the unfortunate woman, except death!

But, said the Public Minister, her death is voluntary; this woman died in her own time.

But how could she live? Was she not condemned? Had she not drunk to the last dregs her shame and baseness?

Yes, upon our stage we show women who have strayed (and I cannot say what they have done) as happy, charming and smiling. *Questam corpore facerant*. I limit myself to this remark: When they show them to us happy, charming, enveloped in muslin, presenting a gracious hand to counts, marquises and dukes, often responding themselves to the name of countess or duchess, you call that respecting public morals. But the man who depicts the adulterous woman dying a shameful death, commits an outrage against public morals!

Now, I do not wish to say it is not your opinion that you have expressed, since you have expressed it, but you have yielded to a prejudice. No, it cannot be you, the husband, the father of a family, the man who is there, it is not you, that is not possible; without the prejudice of the speech of the prosecution and a preconceived idea, you would never say that M. Flaubert was the author of a bad book! Surely, left to your inspirations, your appreciation would be the same as mine. I do not speak from a literary point of view; but from a moral and religious standard, as you understand it and I understand it, you and I could not differ.

They have said, furthermore, that we have brought upon the scene a materialistic curate. We took the curate as we took the husband. He is not an eminent ecclesiastic, but an ordinary priest, a country curate. And as we have insulted no one, expressed no thought or sentiment that could be injurious to a husband, so we have insulted no ecclesiastic. I have only a word to say beyond this. Do you wish to read books in which ecclesiastics play a deplorable rôle? Take *Gil Blas*, *The Canon* (of Balzac), *Nôtre-Dame*

de Paris of Victor Hugo. If you wish to read of priests who are the shame of the clergy, seek them elsewhere, for you will not find them in *Madame Bovary*. What have we shown? A country curate, who in his function of country curate is, like M. Bovary, an ordinary man. Have I represented him as a gourmand, a libertine, or a drunkard? I have not said a word of that kind. I have represented him fulfilling his ministry, not with elevated intelligence, but as his nature allowed him to fulfill it. I have put in contact with him, and in an almost continual state of discussion, a type which lives—as the creatures of M. Prudhomme live—as all other creations of our time will live who are taken from truth and which it is not possible for one to forget, and that is the country pharmacist, the Voltairean, the sceptic, the incredulous man, who is in a perpetual quarrel with the curate. But in these quarrels, who is it that is beaten, buffeted, and ridiculed? It is Homais; to him is the most comic rôle given, because he is the most true, because he best paints our sceptical epoch, a fury whom we call a priest-hater. Permit me still to read to you page 206. It is the good woman of the inn who offers something to her curate:

"What can I do for you, Monsieur le Curé?" asked the landlady, as she reached down from the chimney one of the copper candlesticks placed with their candles in a row. "Will you take something? A thimbleful of *cassis*? A glass of wine?"

"The priest declined very politely. He had come for his umbrella, that he had forgotten the other day at the Ernemont convent, and after asking Madame Lefrançois to have it sent to him at the presbytery in the evening, he left for the church, from which the Angelus was ringing.

"When the chemist no longer heard the noise of his boots along the square, he thought the priest's behavior just now very unbecoming. This refusal to take any refreshment seemed to him the most odious hypocrisy;

all priests tipped on the sly, and were trying to bring back the days of the tithe.

"The landlady took up the defense of her curé.

"'Besides, he could double up four men like you over his knee. Last year he helped our people to bring in the straw; he carried as many as six trusses at once, he is so strong.'

"'Bravo!' said the chemist. 'Now just send your daughters to confess to fellows with such a temperament! I, if I were the Government, I'd have the priests bled once a month. Yes, Madame Lefrançois, every month—a good phlebotomy, in the interests of the police and morals.'

"'Be quiet, Monsieur Homais. You are an infidel; you've no religion.'

"The chemist answered: 'I have a religion, my religion, and I even have more than all these others with their mummeries and their juggling. I adore God, on the contrary. I believe in the Supreme Being, in a Creator, whatever he may be. I care little who has placed us here below to fulfill our duties as citizens and fathers of families; but I don't need to go to church to kiss silver plates, and fatten, out of my pocket, a lot of good-for-nothings who live better than we do. For one can know him as well in a wood, in a field, or even contemplating the eternal vault like the ancients. My God! mine is the God of Socrates, of Franklin, of Voltaire, and Béranger! I am for the profession of faith of the 'Savoyard Vicar,' and the immortal principles of '89! And I can't admit of an old boy of a God who takes walks in his garden with a cane in his hand, who lodges his friends in the belly of whales, dies uttering a cry, and rises again at the end of three days; things absurd in themselves, and completely opposed, moreover, to all physical laws, Which proves to us, by the way, that priests have always wallowed in torpid ignorance, in which they would fain engulf the people with them.'

"He ceased looking round for an audience, for in his bubbling over the chemist had for a moment fancied himself in the midst of the town council. But the landlady no longer heeded him; she was listening to a distant rolling."

What is this? A dialogue, a scene such as occurred each time that Homais had occasion to speak of priests.

There is something better in the last passage of page 271:

"Public attention was distracted by the appearance of Monsieur Bournisien, who was going across the market with the holy oil.

"Homais, as we due to his principles, compared priests to ravens attracted by the odour of death. The sight of an ecclesiastic was personally disagreeable to him, for the cassock made him think of the shroud, and he detested the one from some fear of the other."

Our old friend, he who lent us the catechism, was very happy over this phrase; he said to us: "It is a true hit; it is indeed the portrait of a *priestophobe* whom the cassock makes think of a shroud, and who holds one in execration from a little fear of the other." He was impious, and he profaned the cassock a little through impiety, perhaps, but much more because he was made to think of a shroud.

Permit me to make a *résumé* of all this. I am defending a man who, if he had met a literary criticism upon the form of his book, or upon certain expressions, or on too much detail, upon one point or another, would have accepted that literary criticism with the best heart in the world. But to find himself accused of an outrage against morals and religion! M. Flaubert has not recovered from it; and he protests here before you with all the

astonishment and all the energy of which he is capable against such an accusation.

You are not of the sort to condemn books upon certain lines, you are of the sort to judge after reflection, to judge of the way of putting a work, and you will put this question with which I began my plea and with which I shall end it: Does the reading of such a book give a love of vice, or inspire a horror of it? Does not a punishment so terrible drive one to virtue and encourage it? The reading of this book cannot produce upon you an impression other than it has produced upon us, namely: that the work is excellent as a whole, and that the details in it are irreproachable. All classic literature authorizes the painting of scenes like these we are passing upon.

With this understanding, we might have taken one for a model, which we have not done; we have imposed upon ourselves a sobriety which we ask you to take into account. If, as is possible, M. Flaubert has overstepped the bound he placed for himself, in one word or another, I have only to remind you that this is a first work, but I should then have to tell you that his error was simply one of self-deception, and was without damage to public morals. And in making him come into Court—him, whom you know a little now by his book, him whom you already love a little and will love more, I am sure, when you know him better—is enough of a punishment, a punishment already too cruel. And now it is for you to decide. You have already judged the book as a whole and in its details; it is not possible for you to hesitate!

* * * * *

THE DECISION

The Court has given audience for a part of the last week to the debate of the suit brought against MM. Léon Laurent-Pichat and Auguste-Alexis Pillet, the first the director, the second the printer of a periodical publication called the *Revue de Paris*, and M. Gustave Flaubert, a man of letters, all three implicated: 1st, Laurent-Pichat, for having, in 1856, published in the numbers of the 1st and the 15th of December of the *Revue de Paris*, some fragments of a romance entitled, *Madame Bovary* and, notably, divers fragments contained in pages 73, 77, 78, 272, 273, has committed the misdemeanor of outraging public and religious morals and established customs; 2nd, Pillet and Flaubert are similarly guilty; Pillet in printing them, for they were published, and Flaubert for writing and sending to Laurent-Pichat for publication, the fragments of the romance entitled, *Madame Bovary* as above designated, for aiding and abetting, with knowledge, Laurent-Pichat in the facts which have been prepared, in facilitating and consummating the above-mentioned misdemeanor, and of thus rendering themselves accomplices in the misdemeanor provided for by articles 1 and 8 of the law of May 17, 1819, and 59 and 60 of the Penal Code.

M. PINARD, substitute, has sustained the prosecution.

The COURT, after hearing the defense, presented by M. SENARD for M. FLAUBERT, M. DEMAREST for PICHAT, and M. FAVÉRIE for the PRINTER, has set for audience this day (Feb. 7) for pronouncing judgment, which is rendered in the following terms:

"*Be it known*, that Laurent-Pichat, Gustave Flaubert and Pillet are charged with having committed the misdemeanor of an outrage against public and religious morals and established customs; the first as author, in publishing in the periodical publication entitled the *Revue de Paris* of which he is the manager-proprietor, and in the numbers of the 1st and 15th of

October, the 1st and 15th of November and the 1st and 15th of December, 1856, a romance entitled *Madame Bovary*, Gustave Flaubert and Pillet as accomplices, the one for furnishing the manuscript, and the other for printing the said romance;

"*Be it known*, that the particularly marked passages of the romance with which we have to do, which include nearly 300 pages, are contained, according to the terms of the ordinance of dismissal before the Court of Correction, in pages 73, 77 and 78 (of the number of the 1st of December), and 271, 272, 273 (of the 15th of December number, 1856);

"*Be it known*, that the incriminated passages, viewed abstractively and isolatedly, present effectively either expressions, or images, or pictures which good taste reproves and which are of a nature to make an attack upon legitimate and honorable susceptibilities;

"*Be it known*, that the same observations can justly be applied to other passages not defined by the ordinance of dismissal, and which, in the first place seem to present an exposition of theories which would at least be contrary to the good customs and institutions which are the basis of our society, as well as to a respect for the most august ceremonies of divine worship;

"*Be it known*, that, from these diverse titles, the work brought before the Court merits severe blame, since the mission of literature should be to ornament and recreate the mind by raising the intelligence and purifying manners, rather than by showing the disgust of vice in offering a picture of disorder which may exist in our society;

"*Be it known*, that the defendants, and particularly Gustave Flaubert, energetically denied the charge brought against them, setting forth that the romance submitted to the judgment of the Court had an eminently moral

aim; that the author had principally in view the exposing of dangers which result from an education not appropriate to the sphere in which one lives, and that, pursuant to this idea, he has shown the woman, the principal personage in the romance, aspiring towards the world and a society for which she was not made, unhappy in her modest condition where she was placed by fate, forgetting first her duties as a mother, afterward lacking in her duties as a wife, introducing successively into her house adultery and ruin, and ending miserably by suicide, after passing through all degrees of the most complete degradation, having even descended to theft;

"Be it known, that this data, moral without doubt in principle, must be completed in its development by a certain severity of language and by a reserve directed especially towards that which touches the exposition of the pictures and situations which the author has employed in placing it before the eyes of the public;

"Be it known, that it is not allowed, under pretext of painting character or local colour, to reproduce the facts, words, and gestures of the digressions of the personages which a writer gives himself the mission to paint; that a like system, applied to works of the mind as well as to productions of the fine arts, would lead to a realism which would be the reverse of the beautiful and the good, and which, bringing forth works equally offensive to the eye and to the mind, would commit a continual outrage against public morals and good manners;

"Be it known, that there are limits which literature, even the lightest, should not pass, and of which Gustave Flaubert and the co-indicted have not taken sufficient account;

"Be it known, that the work of which Flaubert is the author, is a work which appears to be long and seriously elaborated, from a literary point of view and as a study of character; that the passages coming under the

ordinance for dismissal, as reprehensible as they may be, are few in number as compared with the extent of the work; that these passages, either in the ideas they expose, or in the situations they represent, bring out as a whole the characters which the author wished to paint, although exaggerated and impregnated with a vulgar realism often shocking;

"*Be it known*, that Gustave Flaubert affirms his respect for good manners, and all that attaches itself to religious morals; that it does not appear that his book has been written like certain other books, with the sole aim of giving satisfaction to the sensual passions, to a spirit of license and debauch, or of ridiculing things which should be held in the respect of all;

"That he has done wrong only in losing sight of the rules which every writer who respects himself ought never to lose sight of, or forget: that literature, like art, in order to accomplish the good which it is expected to produce ought only to be chaste and pure in its form and expression;

"In the circumstances, *be it known*, that it is not sufficiently proven that Pichat, Gustave Flaubert and Pillet are guilty of the misdemeanor with which they are charged;

"The Court acquits them of the indictment brought against them, and decrees a dismissal without costs."

End of Project Gutenberg's The Public vs. M. Gustave Flaubert, by Various

*** END OF THE PROJECT GUTENBERG EBOOK THE PUBLIC VS.
M. GUSTAVE FLAUBERT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.